Chapter 5180:2-12 | Licensing of Child Care Centers

Ohio Administrative Code / 5180:2

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Rule

Rule 5180:2-12-01 | Definitions for licensed child care centers.

Rule 5180:2-12-01 was renumbered from 5101:2-12-01 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) "Administrator" means the person responsible for the daily operation of the center. The administrator and the owner may be the same person. The administrator is also a child care staff member.

(B) "Adult" means an individual who is at least eighteen years of age.

(C) "Advanced practice registered nurse (APRN)" means a certified registered nurse anesthetist, clinical nurse specialist, certified nurse midwife or certified nurse practitioner under Chapter 4723. of the Revised Code. This was previously called advanced practice nurse (APN).

(D) "Authorized representative" means an individual employed by a center that is owned by a person other than an individual and who is authorized by the owner to do all of the following:

(1) Communicate on the owner's behalf.

(2) Submit on the owner's behalf applications for licensure or approval.

(3) Enter into on the owner's behalf provider agreements for publicly funded child care.

(E) "Career pathways model" means an alternative pathway to meeting the requirements for a child care staff member or administrator that uses an approved framework to document formal education, training, experience, specialized credentials and certifications. This allows the child care staff member or administrator to achieve a designation as an early childhood professional level one, two, three, four, five, or six.

(F) "Certified nurse practitioner (CNP)" means a registered nurse who holds a valid certificate of authority issued under Chapter 4723. of the Revised Code that authorizes the practice of nursing as a CNP in accordance with section 4723.43 of the Revised Code and rules adopted by the board of nursing.

(G) "Child" means an infant, toddler, preschool child or school-age child.

(H) "Child care" per section 5104.01 of the Revised Code means all of the following:

(1) Administering to the needs of infants, toddlers, preschool-age children and school-age children outside of school hours.

(2) By persons other than their parents, guardians, or custodians.

(3) For part of the twenty-four-hour day.

(4) In a place other than a child's own home, except that an in-home aide provides child care in the child's own home.

(5) By a provider required by Chapter 5104. of the Revised Code to be licensed or approved by the department of job and family services, certified by a county department of job and family services, or under contract with the department to provide publicly funded child care as described in section 5104.32 of the Revised Code.

(I) "Child care staff member" means an employee of a child care center who is responsible for the care and supervision of children. A substitute child care staff member may replace a

child care staff member on a temporary basis. The administrator, authorized representative, or owner may be a child care staff member when not involved in other duties.

(J) "Corrective action plan" describes the action taken by the program to correct a non-compliance. This plan does not confirm the program is in compliance with the rule, or negate the non-compliance finding. Corrective action plans are submitted in the Ohio child licensing and quality system (OCLQS) and are to be completed in their entirety to be approved.

(K) "Drop-in center," as defined in Chapter 5104. of the Revised Code, means a center that provides child care for children on a temporary, irregular basis. "Temporary and irregular" means no more than thirty days a year for any child enrolled. Drop-in centers shall comply with all rules in Chapter 5101:2-12 of the Administrative Code except:

(1) In reference to rule 5101:2-12-25 of the Administrative Code, the drop-in center shall not administer any medication, food supplement or modified diet.

(2) In reference to rule 5101:2-12-20 of the Administrative Code, the drop-in center shall not be required to provide a cot for each child the center is licensed to serve.

(3) In reference to rule 5101:2-12-04 of the Administrative Code, the drop-in center which does not prepare and serve food shall not be required to obtain a health department approval.

(4) In reference to rule 5101:2-12-11 of the Administrative Code, the drop-in center shall not be required to meet the provisions of paragraphs (C) and (D) of that rule, but if these provisions are not met, the drop-in center shall have a specific plan to provide for gross motor activity for children in care. If a drop-in center chooses to include outdoor play the drop-in center shall meet the requirements of paragraph (A)(5) of rule 5101:2-12-17 of the Administrative Code.

(L) "Employee" means a person who either receives compensation for duties performed in a child care center or has assigned work hours or duties in a child care center.

(M) "Field trips" means infrequent or irregularly scheduled excursions from the center.

(N) "Food supplement" means a vitamin, mineral, or combination of one or more vitamins, minerals and/or energy-producing nutrients (carbohydrate, protein or fat) used in addition to meals or snacks.

(O) "Infant" means a child who is under eighteen months of age.

(P) "License capacity" is the maximum number of children who may be cared for in a child care center at any one time. License capacity is indicated on the license. License capacity is not the same as the total number of children enrolled in the center or attending the center on any given day. Children away from the center on a field trip or a special outing, and under the supervision of a child care staff member, shall be included in the count for license capacity.

(Q) "Medication" means any substance or preparation which is used to prevent or treat a wound, injury, infection, infirmity, or disease. This includes medication that is over the counter, or prescribed or recommended by a physician or advance practice nurse certified to prescribe medication, and permitted by the parent for administration or application.

(R) "Moderate risk non-compliance" means a licensure rule violation that has the potential to lead to an increased risk of harm to, or death of, a child and is observable, not inferable.

(S) "Modified diet" means any diet eliminating the use of any one or more of the four food groups or altering the amount of food required to be served to meet one-third of the recommended dietary allowance as required by rule 5101:2-12-22 of the Administrative Code.

(T) "Owner" includes a person, as defined in section 1.59 of the Revised Code, or government entity.

(U) "Parent" means the father or mother of a child, an adult who has legal custody of a child, an adult who is the guardian of a child, or an adult who stands in loco parentis with respect to a child, and whose presence in the home is needed as the caretaker of the child. Parent has the same meaning as "caretaker parent" as defined in section 5104.01 of the Revised Code.

(V) "Parent cooperative child care center", as defined in Chapter 5104. of the Revised Code, means a corporation or association organized for providing educational services only for children of its members without gain to the corporation. Ownership and control of the corporation or association rests solely with its members, and at least one parent member of the corporation is on the premises during the center's hours of operation. Parent cooperatives shall comply with all rules in Chapter 5101:2-12 of the Administrative Code except:

(1) In reference to rule 5101:2-12-07 of the Administrative Code, the duties of the administrator of a parent cooperative may be carried out under the supervision and in conjunction with a parent board.

(2) In reference to rule 5101:2-12-07 of the Administrative Code, the parent board of a parent cooperative, in cooperation with the administrator, may be responsible for conducting preadmission interviews.

(3) In reference to rule 5101:2-12-04 of the Administrative Code, the parent cooperative center which does not prepare and serve food shall not be required to obtain a health department approval.

(W) "Part-time child care center," as defined in Chapter 5104. of the Revised Code, means a center that provides child care for no more than four hours per day for any child or no

more than fifteen weeks per summer. Part-time child care centers shall comply with all rules in Chapter 5101:2-12 of the Administrative Code except:

(1) In reference to rule 5101:2-12-20 of the Administrative Code, the part-time center, which does not include a nap as part of their scheduled daily program, shall be required to provide only one washable cot, mat, or pad for an ill child.

(2) In reference to rule 5101:2-12-07 of the Administrative Code, an administrator of a part-time center may have duties as a child care staff member during all hours of operation.

(3) In reference to rule 5101:2-12-17 of the Administrative Code, only the part-time center which includes outdoor play as part of their scheduled daily program shall be required to comply with all stipulations of that rule, except as indicated in paragraph (A)(5) of rule 5101:2-12-17 of the Administrative Code, for a part-time program that provides child care for no more than four hours per day for any child.

(X) "Physician" means a person issued a certificate to practice in accordance with Chapter 4731. of the Revised Code and rules adopted by the state medical board or a comparable body in another state.

(Y) "Physician assistant (PA)" means a person who has obtained a valid certificate to practice in accordance with Chapter 4730. of the Revised Code and rules adopted by the state medical board or a comparable body in another state.

(Z) "Preschool child" means a child who is three years old or older but is not a school-age child.

(AA) "Public children services agency (PCSA)" means an entity specified in section 5153.02 of the Revised Code that has assumed the powers and duties of the children services function prescribed by Chapter 5153. of the Revised Code for a county.

(BB) "Routine trips" means repeated excursions off the center premises which regularly occur on a previously scheduled basis and that parents have been made aware of the destinations of the trip.

(CC) "School-age child" means a child who is enrolled in or is eligible to be enrolled in a grade of kindergarten or above, but is less than fifteen years old or, in the case of a child who is receiving special needs child care, is less than eighteen years old.

(DD) "Serious risk non-compliance" means a licensure rule violation that has the potential to lead to a great risk of harm to, or death of, a child.

(EE) "Special needs child care" means child care provided to a child who is less than eighteen years of age and either has one or more chronic health conditions or does not meet age appropriate expectations in one or more areas of development, including social, emotional, cognitive, communicative, perceptual, motor, physical, and behavioral development and that may include on a regular basis such services, adaptations, modifications, or adjustments needed to assist in the child's function or development.

(FF) "Toddler" means a child who is at least eighteen months of age but less than three years of age.

(GG) "Transitioning child" means any child enrolled in a center who, for easy adjustment, is temporarily being placed with a group prior to being permanently assigned to that group.

(HH) "Voluntary temporary closure" means the program requests to stop serving children, but not close the license. A voluntary temporary closure shall not exceed twelve months.

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Supplemental Information

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Rule 5180:2-12-02 | Application and amendments for a child care center license.

Rule 5180:2-12-02 was renumbered from 5101:2-12-02 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What is the application process to establish or operate a licensed child care center?

The owner or owner's representative is to:

(1) Complete a professional registry profile through the Ohio professional registry (OPR) at https://www.occrra.org/opr.

(2) Register online through the OPR and complete the required center prelicensing training. The prelicensing training shall have been taken within the five years prior to application for a license.

(3) Complete an initial application online in the Ohio child licensing and quality system (OCLQS) at https://oclqs.force.com and submit the fee of fifty dollars to the Ohio department of job and family services (ODJFS).

(a) The application fee submitted with an application is nonrefundable and shall not be credited or transferred to any other application.

(b) The application is considered filed with the ODJFS as of the date it is received electronically and the payment has cleared.

(c) The application will be deleted from the system after one hundred twenty days if the fee payment is not received.

(d) Any application submitted without complete and accurate information will need to be amended with complete and accurate information before being licensed.

(e) The application will be deleted and the fee forfeited if the center is not ready to be licensed after twelve months.

(4) Notify in OCLQS if the owner or owner's representative wants to voluntarily withdraw the application. This results in a forfeiture of the application fee.

(B) What additional items shall be submitted during the application process?

The items listed in appendix A to this rule are required and shall be completed and submitted prior to licensure.

(C) Does the child care center license need to be visible?

The license is to be visible to parents at all times.

(D) Can a child care center license be issued to an address or space that is currently licensed for family child care or a child care center?

A child care center license shall not be issued to any address that is currently licensed as a family child care home, or any space licensed for use by another child care center.

(E) Will the license be a continuous license?

The license shall be a continuous license unless:

(1) The center is in the provisional period pursuant to rule 5101:2-12-06 of the Administrative Code.

(2) The center moves to a new address and does not propose a change of location amendment pursuant to paragraph (G) of this rule.

(3) The owner of the center, which can be a corporation or partnership, changes.

(4) The center voluntarily surrenders the license by notifying the ODJFS in OCLQS.

(5) It is revoked pursuant to rule 5101:2-12-05 of the Administrative Code.

(F) What is the process to change or amend a license?

(1) The center is to submit a request and all applicable documents in OCLQS.

(2) What information can be amended on an existing license?

(a) Name of administrator.

(b) License capacity.

(c) Change of location of the program.

(3) What is the timeline for requesting an amendment?

(a) For a change in administrator, the center is to submit the amendment, with qualifications pursuant to rule 5101:2-12-07 of the Administrative Code for the new administrator, within thirty days. This includes when an existing administrator is on temporary leave for ninety or more days.

(b) For a change in capacity, the center shall request and be approved for the amendment prior to serving additional children. This includes submitting all corrective action plans required pursuant to rule 5101:2-12-03 of the Administrative Code.

(c) For a change in location, the center shall request the amendment at least thirty days prior to the last day at the current location. Failure to request within thirty days may result in a gap of care. Care shall not begin until the license has been transferred to the new location.

(4) What are the requirements if a center wants to permanently move to a different location?

The center is to:

(a) Comply with paragraph (F)(3)(c) of this rule.

(b) Submit all required documents listed in appendix B to this rule prior to licensure at the new location.

(c) Submit a fee of fifty dollars in OCLQS thirty days prior to the proposed move.

(d) Comply with an inspection at the new location and any applicable determinations of license capacity for the new location.

(e) Cease child care operations at the original center location at the time the license is issued for the new address.

(f) If care ceases at the old location before the new location is ready to be licensed, the program may be temporarily closed pursuant to paragraph (G) of this rule.

(g) If the new location is unable to be licensed within ninety days after the request, the request for amendment will be closed, which results in forfeiture of the application fee.

(5) What are the requirements if a center needs to temporarily provide care in a different location?

(a) If the center is temporarily unable to provide care in the licensed location because the location has been deemed unsafe for care of children by the building department, fire department, local health department, local law enforcement or other government agency, the center may request to temporarily provide care in a new location.

(i) The center shall send a written request to ODJFS and comply with an inspection of the temporary location prior to providing care at the temporary location.

(ii) The written request shall include written documentation from the government agency that deemed the location to be unsafe for care of children and shall include the plan and timeline for addressing the needs of the licensed location.

(iii) Prior to resuming care at the licensed location, the center shall provide written approval to ODJFS from the government agency that has deemed the location safe to resume care of children.

(b) If the center is unable to return to the licensed location within one hundred eighty days, the center shall follow the process for a permanent change of location pursuant to paragraph (F)(4) of this rule. There are no extensions for a temporary change of location.

(G) How shall an administrator, owner or owner's representative request a voluntary temporary closure status for a license of a child care center?

(1) The administrator, owner or owner's representative is to request the temporary closure status in OCLQS.

(2) The temporary closure status shall not exceed twelve months.

(3) The center shall not serve any children during the temporary closure status.

(4) The center may be required to comply with an inspection prior to the end of the temporary closure status and prior to serving children again.

(5) If at the end of the twelve months, the center has not requested in OCLQS to reinstate the license or is not able to be re-opened, the ODJFS may close the license without hearing rights afforded by Chapter 119. of the Revised Code.

(H) What information will the center keep current in OCLQS?

(1) Mailing address.

(2) Telephone number.

(3) Email address.

(4) Days and hours of operation.

(5) Services offered.

(6) Name of program.

(7) Ohio secretary of state entity number, if applicable.

(8) Private pay rates.

(I) What if an individual listed in OCLQS as a legal business owner (as defined in section 5104.03 of the Revised Code) changes?

The center is to log into OCLQS to complete and submit the information within thirty days of the change.

View Appendix

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Supplemental Information

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Rule 5180:2-12-03 | Compliance inspection and complaint investigation of a licensed child care center.

Rule 5180:2-12-03 was renumbered from 5101:2-12-03 on 01/02/2025.

Effective: *May 15, 2022* ***Promulgated Under:*** *119.03*

(A) What compliance inspections are required for child care centers?

(1) At least one inspection prior to the initial issuance of a provisional license.

(2) At least two inspections during the provisional period.

(3) At least one inspection each state fiscal year after the issuance of the continuous license. Compliance inspections completed in the state fiscal year pursuant to paragraph (A)(2) of this rule meet this requirement.

(4) Any complaint investigations involving the center.

(B) Will inspections be announced or unannounced?

At least one inspection shall be unannounced and all inspections may be unannounced.

(C) What is required of a licensed center for an inspection and/or complaint investigation?

The licensed child care center shall allow the Ohio department of job and family services (ODJFS) to:

(1) Complete an inspection of all areas where child care is provided, children have access to and all areas used to verify compliance with Chapter 5101:2-12 of the Administrative Code and Chapter 5104. of the Revised Code.

(2) Review required records and documentation.

(3) Interview or take statements from anyone pertinent to the investigation which may include any of the following:

(a) Building officials, fire department inspectors, sanitarians, public health or other state or local officials.

(b) Neighbors.

(c) Parents and relatives of children in care.

(d) Staff of the public children services agency (PCSA).

(e) Anyone mentioned by the complainant.

(f) Law enforcement personnel.

(g) Current and past center employees.

(h) Other witnesses.

(4) Document findings in writing or in photographs or by any other means.

(D) What are additional requirements for a licensed center as a result of an inspection and/or complaint investigation?

The center is to:

(1) Complete and submit a corrective action plan in the Ohio child licensing and quality system (OCLQS) addressing the non-compliances detailed in the inspection report within the time frame requested in the inspection report.

(2) Not misrepresent, falsify or withhold information from ODJFS.

(3) Pursuant to section 5104.043 of the Revised Code, provide a written or electronic notice of the serious risk non-compliance (SRNC) to all parents of enrolled children within fifteen business days of receipt of the non-compliance, if ODJFS determines that an act or omission of a child care center constitutes a SRNC pursuant to appendix A to this rule.

(a) The notice is to include a statement informing each parent of the web site maintained by ODJFS and the location of further information regarding the determination.

(b) If the center requests a review of the finding pursuant to paragraph (F) of this rule, and the finding is upheld, the notice to parents is to be sent within five business days of receipt of the decision by ODJFS.

(c) The center will need to provide a copy of the notice to ODJFS.

(d) The requirements of section 5104.043 of the Revised Code do not apply if ODJFS suspends the license of the child care center.

(E) Will a licensed center have additional inspections based on non-compliances found?

All non-compliances may lead to additional inspections or compliance materials required by ODJFS.

(F) What if the center does not agree with the licensing findings?

The center may complete and submit a JFS 01155 "Request for Review for Licensing and Step Up To Quality" with any applicable documentation within seven business days from the receipt of the inspection report.

(G) Are licensing inspection records available to the public?

(1) Inspections may be viewed at http://childcaresearch.ohio.gov/.

(2) An individual may submit a written request to ODJFS for a copy of the center's licensing record.

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Supplemental Information

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Rule 5180:2-12-04 | Building department inspection, fire inspection and food service requirements for a licensed child care center.

Rule 5180:2-12-04 was renumbered from 5101:2-12-04 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the requirements for building inspections?

(1) A certificate of occupancy for the purpose of operating a child care center is required in accordance with Chapters 3781. and 3791. of the Revised Code and shall be obtained from the local certified building department or in the absence of a local

certified building department, the Ohio department of commerce, and be available on-site for review.

(2) The center shall comply with any stipulations or limitations noted on the certificate of occupancy.

(3) A certificate of occupancy is required in the following circumstances:

(a) At the time of application for a child care center license.

(b) At the time a child care center requests a license amendment for a change of location, including a temporary change of location.

(c) Prior to the use of any areas of the structure not previously inspected and approved for child care use.

(d) At the time of major repair, modification or alteration of any existing structure presently being used for child care but prior to the continued use of modified or altered parts of the structure. Major repair, modification or alteration includes:

(i) Cutting away of any wall, partition or portion thereof, the removal of or cutting of any structural beam or bearing support or the removal or change of any required means of escape, or rearrangement of parts of the structure affecting the exit requirements.

(ii) Addition to, alteration of, replacement or relocation of any gas, oil, water, soil, waste or vent piping, electrical wiring or heating, ventilating or air-conditioning equipment.

(iii) Any modification that would otherwise need a plan approval as required by the rules of the Ohio board of building standards.

(4) A new or revised certificate of occupancy is not required for the following:

(a) A change in ownership with no change of use.

(b) Child care is provided exclusively for school-age children in an existing public school or chartered nonpublic school building as described in section 5104.02 of the Revised Code.

(B) What are the requirements for a fire inspection?

(1) Licensed child care centers shall secure a written fire inspection from the state fire marshal or the local fire safety inspector for the municipality or township having jurisdiction.

(2) The child care center is to abide by any stipulations or limitations set forth in the written documentation by the state fire marshal or local fire safety inspector.

(3) A fire inspection is to be obtained at the following times:

(a) At the time of initial application for a child care center license.

(b) At the time of a child care center license amendment when requesting a change of location, including a temporary change of location.

(c) At least once annually within each twelve months from the date of the last fire inspection report.

(d) Prior to the use of any areas of the structure not previously inspected and approved for child care use.

(4) If child care is provided exclusively for school-age children in an existing public school or chartered nonpublic school building as described in section 5104.02 of the Revised Code, a fire inspection for the child care center is not required.

(C) What are the requirements for preparing and serving food for a child care center ?

(1) A valid food service operation license or exemption status shall be obtained from the local health department having jurisdiction.

(2) Meals or snacks may be provided by an off-site food processing establishment registered with the Ohio department of agriculture (ODA). This ODA registration requirement includes meals or snacks prepared by a child care center and provided or transported to a different child care center for serving.

(a) The center is to maintain on file a copy of the food processing establishment's current registration.

(b) If the food processing establishment only provides the food and it is the responsibility of the center to serve the food, the center is to follow the requirements of the local health department having jurisdiction, including securing a food service operation license for the center.

(3) A food service license or exemption for the child care center is not required if the child care program is located in an existing public school, chartered non-public school, church or similar location which maintains a food service operation license. The child care center is to obtain written documentation by the food service operation license holder granting permission to operate under their license.

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Supplemental Information

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Rule 5180:2-12-05 | Denial, revocation and suspension of a licensed child care center application or license.

Rule 5180:2-12-05 was renumbered from 5101:2-12-05 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What does "owner" mean?

(1) For purposes of paragraphs (C) and (E) of this rule, "owner" is defined in rule 5101:2-12-01 of the Administrative Code, except that "owner" also includes a firm, organization, institution or agency, as well as any individual governing board members, partners, or authorized representatives of the owner as defined in section 5104.03 of the Revised Code.

(2) For all other paragraphs of this rule, "owner" is as defined in rule 5101:2-12-01 of the Administrative Code.

(B) What are the reasons an applicant may have an application denied or a licensed child care center may have a provisional or continuous license revoked?

(1) The center is not in compliance with Chapter 5101:2-12 of the Administrative Code or Chapter 5104. of the Revised Code.

(2) The owner or administrator has been determined not eligible to own a child care program or to be employed in a child care program as a result of the background check requirements pursuant to rule 5101:2-12-09 of the Administrative Code.

(3) The center fails to submit documentation or information requested by the Ohio department of job and family services (ODJFS) within required time frames.

(4) The center has refused to allow ODJFS staff access onto its premises or to any area used for child care.

(5) The center has furnished or made misleading or false statements or reports to ODJFS.

(6) Failure of any person, firm, partnership, organization, institution, or agency to cooperate with the ODJFS or any state or local official when performing duties required by Chapter 5104. of the Revised Code and Chapter 5101:2-12 of the Administrative Code.

(C) What happens if an application is in the process of being denied or a provisional or continuous license is in the process of being revoked?

(1) If an application for a child care center, type A home or type B home has been issued a notice of intent to deny, no new application for a child care center license shall be processed for the owner until after the completion of the denial process.

(2) If a provisional or continuous license for a child care center, type A home or type B home has been issued an intent to revoke, no new application for a child care center license shall be processed for the same owner until after the completion of the revocation process.

(3) If the child care center has been issued a notice of intent to revoke the program's license, the center is to notify the families of all enrolled children and post the notice of intent in a noticeable location within forty-eight hours of receipt of the notice.

(D) What if a center voluntarily surrenders the license or voluntarily withdraws the application during the revocation or denial process?

The voluntary surrender of a license or the withdrawal of an application for licensure shall not prohibit ODJFS from revoking a license or denying an application.

(E) What happens if an application has previously been denied, or a provisional or continuous license, or an in-home aide certification is revoked?

(1) If a license of a child care center, type A home, or type B home is revoked, another license shall not be issued to the owner of the center, type A home, or type B home until five years have elapsed from the date the license was revoked.

(2) If an application for a child care center, type A home, or type B home license is denied, the applicant shall not be licensed until five years have elapsed from the date the application was denied.

(3) If the certification of an in-home aide is revoked, the applicant shall not be issued a child care center license until five years have elapsed from the date the certification was revoked.

(F) Which licensing actions by ODJFS give the center rights to an adjudicatory hearing, in accordance with the requirements of Chapter 119. of the Revised Code?

(1) Denial of an application.

(2) Revocation of an existing license, either provisional or continuous.

(3) The finding of jurisdiction in accordance with rule 5101:2-12-01 of the Administrative Code.

(4) Issuance of a license with authorization for license capacity which does not agree with the authorization sought by the center.

(5) Denial of a continuous license at the expiration of the center's provisional license.

(G) When can ODJFS suspend a license?

ODJFS may immediately suspend the license of a center if ODJFS determines that any of the following have occurred:

(1) A child dies or suffers a serious injury while receiving child care by the center.

(2) A public children services agency (PCSA) accepts a complaint of abuse or neglect pursuant to section 2151.421 of the Revised Code on any of the following people:

(a) The center owner or owner's representative.

(b) The center administrator, if the administrator has not been released from employment or put on administrative leave.

(c) An employee of the center, if the employee has not been immediately released from employment or put on administrative leave.

(3) Any of the following people have been charged by indictment, information, or complaint with an offense relating to the abuse or neglect of a child:

(a) The center owner or owner's representative.

(b) The center administrator, if the administrator has not been released from employment or put on administrative leave.

(c) An employee of the center, if the employee has not been released from employment or put on administrative leave.

(4) ODJFS or a county agency determines that the center created a serious risk to the health or safety of a child receiving child care in the center that resulted in or could have resulted in a child's death or injury.

(5) ODJFS determines that the owner or licensee of the center does not meet the requirements of section 5104.013 of the Revised Code.

(H) What happens if a center's license is suspended?

(1) Upon receipt of a written suspension order from ODJFS, delivered either by certified mail or in person, the center shall:

(a) Immediately stop providing care to all children.

(b) Provide written notification of the suspension to the parents of all children enrolled in the center.

(2) Refusal of delivery by personal service or by mail is not failure of delivery and service shall be deemed to be complete.

(I) Can the center request a review of the decision to suspend the license?

The center may request an adjudicatory hearing before the department pursuant to sections 119.06 to 119.12 of the Revised Code.

(J) How long will the license be suspended?

The suspension shall remain in effect until any of the following occurs:

(1) The PCSA completes its investigation pursuant to section 2151.421 of the Revised Code and determines that all of the allegations are unsubstantiated.

(2) All criminal charges are disposed of through dismissal or a finding of not guilty.

(3) Pursuant to Chapter 119. of the Revised Code, ODJFS issues a final order terminating the suspension.

(K) Which ODJFS licensing actions, ministerial in nature, are not subject to an administrative hearing?

(1) Rejection by ODJFS of any application for a license for procedural reasons such as, but not limited to, improper fee payment, incomplete submission of required materials or use of invalid forms.

(2) Denial of an application pursuant to paragraph (E) of this rule.

(3) Closing a license that has been in a temporary closure for more than twelve months pursuant to rule 5101:2-12-02 of the Administrative Code.

(4) Closing a license if the child care center is no longer located at the address on the license and the owner has not requested a change of location or closure pursuant to rule 5101:2-12-02 of the Administrative Code.

(5) Closing a license if the owner of the child care center has changed.

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Rule 5180:2-12-06 | Procedures for a licensed child care center operating under a provisional license.

Rule 5180:2-12-06 was renumbered from 5101:2-12-06 on 01/02/2025.

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(A) How long is a provisional license valid for a newly licensed child care center?

A provisional license for a newly licensed child care center is valid for at least twelve months and until the continuous license is issued, unless revoked pursuant to rule 5101:2-12-05 of the Administrative Code.

(B) What requirements shall the child care center meet for the provisional license to be amended to a continuous license at the end of the provisional period?

By the end of the provisional period, the center shall:

(1) Be in compliance with Chapter 5101:2-12 of the Administrative Code.

(2) Have children enrolled and attending the center.

(3) Have a qualified administrator named pursuant to rule 5101:2-12-07 of the Administrative Code.

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Rule 5180:2-12-07 | Administrator responsibilities, requirements and qualifications for a licensed child care center.

Rule 5180:2-12-07 was renumbered from 5101:2-12-07 on 01/02/2025.

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(A) What are the requirements to be an administrator in a licensed child care center?

(1) Be named on the child care center license.

(2) Written documentation verifying the administrator's qualifications is to be kept on file at the center or verified documentation is available for review in the Ohio professional registry (OPR). Administrators are to meet the education requirements detailed in appendix A to this rule.

(3) A person named as administrator, who was promoted from within, and who does not meet the requirements of appendix A to this rule within one year of being named

as administrator, is to no longer serve as the administrator. The person also is not to be named administrator at another location until the administrator qualifications have been met.

(4) The administrator is to complete a rules review course provided by the Ohio department of job and family services (ODJFS).

(a) Administrators are to complete the rules review course within six months of the date of their appointment and every five years thereafter.

(b) Verification of completion of the rules review course is to be documented in the OPR.

(5) The administrator is to complete the staff orientation training as prescribed by ODJFS within thirty days of being named administrator at the center or the administrator has documentation of completion of the child care center staff orientation or child care center pre-licensing training after December 31, 2016.

(B) What are the responsibilities of the administrator in a licensed child care center?

The administrator is to:

(1) Be responsible for the daily operation of the child care center and for maintaining compliance with Chapter 5104. of the Revised Code and Chapter 5101:2-12 of the Administrative Code.

(2) Be on-site a minimum of one-half of the hours that the child care center is in operation during the week, or forty hours per week, whichever is less. If there is more than one administrator, at least one administrator is to meet this requirement.

(3) For child care centers that are in operation on the weekends and/or evenings/overnights, as well as during the week, be on-site at the center at least twenty

hours per week during the hours of six a.m. to seven p.m., Monday through Friday. If there is more than one administrator, at least one is to meet this requirement.

(4) Post the administrator's scheduled hours of availability to meet with parents in a noticeable location.

(5) Be responsible for the creation, maintenance and implementation of the policies and procedures detailed in appendix B to this rule. Nothing in these policies shall conflict with Chapter 5104. of the Revised Code or Chapter 5101:2-12 of the Administrative Code, and if applicable, Chapter 5101:2-16 or 5101:2-17 of the Administrative Code. A copy of these policies and procedures is to be available on-site at the center.

(6) Provide the parent and all employees with the policies and practices in appendix B to this rule.

(7) Provide a copy of appendix C to this rule to the parents of the children enrolled in the center.

(8) Make available the current licensing rules in a noticeable area on the premises. The rules may be made available via paper copy or electronically.

(9) Upon request, provide a parent with any information necessary for the parent to compile child care related expenses for income tax preparation, including tax identification numbers.

(10) Cooperate with other government agencies as necessary to maintain compliance with Chapter 5101:2-12 of the Administrative Code.

(11) Ensure that no administrator, employee, licensee or child care staff member discriminates in the enrollment of children upon the basis of race, color, religion, sex, disability, or national origin.

(C) What are the OPR and documentation responsibilities for administrators in a licensed child care center?

All administrators are to:

(1) Create or update their individual profile in the OPR.

(2) Create or update the center's organization dashboard in the OPR for each child care center in which they are employed as administrator.

(3) Ensure that all employees and child care staff members complete the following in the OPR:

(a) Create or update their individual profile in the OPR.

(b) Create an employment record in the OPR for the center on or before their first day of employment, including date of hire.

(c) Update changes to positions or roles in the OPR within five calendar days of a change.

(4) Update the center's organization dashboard in the OPR within five calendar days of a change for employees and child care staff members of the program, including:

(a) Scheduled days and hours.

(b) Group assignments, if applicable.

(c) The end date of employment.

(5) Maintain records for each current employee and child care staff member as required in Chapter 5101:2-12 of the Administrative Code on file in the center, if not yet verified in the OPR.

(a) Make employment records available upon request by ODJFS for at least three years after each person's departure, if not verified in the OPR.

(b) Keep employment records confidential except when made available to ODJFS for the purpose of administering Chapter 5104. of the Revised Code and Chapter 5101:2-12 of the Administrative Code.

(D) What if an administrator is not on the premises?

(1) A child care staff member is to be designated as the person in charge and be on the premises.

(2) The designated person in charge does not have to meet the educational requirements of an administrator nor be named on the license.

(3) The designated person in charge is to handle all emergencies and have access to all records required by Chapter 5101:2-12 of the Administrative Code.

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Rule 5180:2-12-08 | Employee and child care staff member requirements for a licensed child care center.

Rule 5180:2-12-08 was renumbered from 5101:2-12-08 on 01/02/2025.

Effective: *January 27, 2024* ***Promulgated Under:*** *119.03*

(A) What are the requirements for an employee in a licensed child care center?

Each employee is to:

(1) Have on file, on or before the employee's first day of employment, a completed medical statement that meets the requirements detailed in appendix A to this rule.

(2) Have written documentation on file of current immunization against tetanus, diphtheria and pertussis (Tdap) from a licensed physician, as defined in Chapter 4731. of the Revised Code, physician's assistant, advanced practice registered nurse, certified nurse midwife, certified nurse practitioner or licensed pharmacist. The employee may be exempt from the immunization requirement for religious reasons with written documentation signed by the individual and for medical reasons with written documentation signed by a licensed physician.

(3) For the purpose of tuberculosis (TB) screening, notify the child care center if the person has both resided in a country identified by the world health organization (WHO) as having a high burden of TB and arrived in the United States within the five years immediately preceding the date of application for employment. A current list of identified high burden countries (HBC) for TB can be found in the most recent report on the WHO website at https://www.who.int/teams/global-tuberculosis-programme/tb-reports.

(a) Notification is to be made on a completed medical statement that meets the requirements detailed in appendix A to this rule.

(b) If the person meets the criteria described in this paragraph, the child care center is to comply with the testing requirements of section 5104.037 of the

Revised Code before employment. The TB test is either a two-step mantoux tuberculin skin test or a blood assay for m. tuberculosis.

(i) If the result of the TB test is negative, the child care center may employ the person.

(ii) If the result of any TB test performed is positive, the child care center is to follow the requirements outlined in appendix C to this rule.

(B) What are the requirements for a child care staff member in a licensed child care center?

Each child care staff member is to:

(1) Be at least sixteen years of age.

(2) Have completed a high school education or be at least a high school junior (on or after the start of high school junior year) and enrolled in or completed one of the following:

(a) An early childhood education or child development career technical program.

(b) A child development associate (CDA) training program or achieved a CDA credential for the age group in which the high school student is working.

(c) A college credit program with early childhood education or child development focus.

(3) Follow the limitations on child supervision and safety outlined in appendix D to this rule when the child care staff member is a high school student and high school graduate under the age of eighteen.

(4) Provide verification of education on or before the child care staff member's first day of employment.

(a) Verification is to be kept on file at the center or in the Ohio professional registry (OPR).

(b) High school education is defined in appendix B to this rule.

(c) For high school students, documentation of high school grade level and enrollment in or completion of a technical, training or college credit program as described in paragraph (B)(2) of this rule is to be verified.

(5) Have on file, on or before the child care staff member's first day of employment, a completed medical statement that meets the requirements detailed in appendix A to this rule.

(6) Have written documentation on file of current immunization against tetanus, diphtheria and pertussis (Tdap) from a licensed physician, as defined in Chapter 4731. of the Revised Code, physician's assistant, advanced practice registered nurse, certified nurse midwife, certified nurse practitioner or licensed pharmacist. The child care staff member may be exempt from the immunization requirement for religious reasons with written documentation signed by the individual and for medical reasons with written documentation signed by a licensed physician.

(7) For the purpose of TB screening, notify the child care center if the person has both resided in a country identified by the WHO as having a high burden of TB and arrived in the United States within the five years immediately preceding the date of application for employment.

(a) Notification is to be made on a completed medical statement that meets the requirements detailed in appendix A to this rule.

(b) If the person meets the criteria described in this paragraph, the child care center is to comply with the testing requirements of section 5104.037 of the

Revised Code before employment. The TB test is either a two-step mantoux tuberculin skin test or a blood assay for m. tuberculosis.

(i) If the result of the TB test is negative, the child care center may employ the person.

(ii) If the result of any TB test performed is positive, the child care center is to follow the requirements outlined in appendix C to this rule.

(C) What are the orientation requirements for child care staff members?

(1) Child care staff members, including substitute child care staff members, shall complete the child care center staff orientation training as prescribed by the ODJFS within thirty days of starting employment at the center as a child care staff member unless the child care staff member has documentation of completion of the training after December 31, 2016.

(2) Completion of the training shall be documented with verification from the OPR.

(3) The child care staff member may be used in ratio, but is not to be left alone with children until the orientation is completed.

(D) What are the Ohio professional registry (OPR) requirements for employees and child care staff members in a child care center?

All employees and child care staff members, including substitute child care staff members, are to:

(1) Create or update their individual profile in the OPR.

(2) Create an employment record for the child care center on or before the first day of employment, including date of hire.

(3) Update their individual profiles or employment records in the OPR within five calendar days of a change, including:

(a) Contact information.

(b) Positions or roles, and related dates.

(E) Do employees and child care staff members have whistle blower protection?

Yes, an employer is not to discharge, demote, suspend or threaten to discharge, demote, suspend or in any manner discriminate against any employee or child care staff member based solely on the employee taking any of the following actions:

(1) Making any good faith oral or written complaint to the ODJFS or other agency responsible for enforcing Chapter 5104. of the Revised Code regarding a violation of this chapter or the rules adopted pursuant to Chapter 5104. of the Revised Code;

(2) Instituting or causing to be instituted any proceeding against the employer under section 5104.04 of the Revised Code;

(3) Acting as a witness in any proceeding under section 5104.04 of the Revised Code;

(4) Refusing to perform work that constitutes a violation of Chapter 5104. or the rules adopted pursuant to Chapter 5104. of the Revised Code.

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Rule 5180:2-12-09 | Background check requirements for a licensed child care center.

Rule 5180:2-12-09 was renumbered from 5101:2-12-09 on 01/02/2025.

Effective: *January 27, 2024* ***Promulgated Under:*** *119.03*

(A) What records are included in a background check?

(1) Bureau of criminal investigation (BCI) records pursuant to section 5104.013 of the Revised Code.

(2) Federal bureau of investigation (FBI) records pursuant to section 5104.013 of the Revised Code.

(3) National sex offender registry.

(4) State sex offender registry.

(5) Statewide automated child welfare information system (SACWIS) records.

(B) Who shall have a background check?

(1) An owner and administrator of a licensed child care center or applicants to be licensed as a child care center.

(2) An employee in a licensed child care center as defined in rule 5101:2-12-01 of the Administrative Code.

(3) A child care staff member in a licensed child care center as defined in rule 5101:2-12-01 of the Administrative Code, including substitutes.

(C) When is a background check required?

(1) At application for a child care center license.

(2) Prior to the first day of employment for employees and child care staff members.

(3) Every five years from the date of the most recent BCI records check.

(D) How is a background check obtained?

The individual shall:

(1) Create a profile in the Ohio professional registry (OPR).

(2) Submit fingerprints electronically according to the process established by BCI and have the BCI and FBI results sent directly to the Ohio department of job and family services (ODJFS). Information on how to obtain a background check can be found at https://www.ohioattorneygeneral.gov/Business/Services-for-Business/WebCheck.

(3) Complete and submit the request for a background check for child care in the OPR.

(E) What if an individual previously resided in a state other than Ohio?

(1) ODJFS will contact any states in which the individual resided in the previous five years to request the information required in paragraph (A) of this rule.

(2) Any information received from other states will be reviewed and considered by ODJFS as part of the background check review pursuant to paragraph (G) of this rule.

(F) What happens if an individual does not complete the full background check determination process?

(1) If the individual completes only the requirements in paragraph (D)(2) of this rule or only the requirements in paragraph (D)(3) of this rule and does not submit the other

component within forty-five days, the background check process will end and a determination of eligibility will not be made.

(2) ODJFS will notify the individual and the program that the background check determination process has ended.

(3) The individual will need to complete the requirements of paragraphs (D)(2) and (D)(3) of this rule to restart the background check determination process in the future.

(G) What makes an individual ineligible to own or be employed in a center?

(1) A conviction or guilty plea to an offense listed in division (A)(5) of section 109.572 of the Revised Code, unless the individual meets the rehabilitation criteria in appendix A to this rule.

(a) Section 109.572 of the Revised Code requires that this rule applies to records of convictions that have been sealed pursuant to section 2953.32 of the Revised Code.

(b) A conviction of or a plea of guilty to an offense listed in division (A)(5) of section 109.572 of the Revised Code is not prohibitive if the individual has been granted an unconditional pardon for the offense pursuant to Chapter 2967. of the Revised Code or the conviction or guilty plea has been set aside pursuant to law. For purposes of this rule, "unconditional pardon" includes a conditional pardon to which all conditions have been performed or have transpired.

(2) Being registered or required to be registered on the national or state sex offender registry or repository.

(3) The individual is identified in SACWIS as the perpetrator for a substantiated finding of child abuse or neglect in the previous ten years from the date the request for background check was submitted or the individual has had a child removed from their

home in the previous ten years pursuant to section 2151.353 of the Revised Code due to a court determination of abuse or neglect caused by that specific person.

(H) What happens after the individual requests the background check in the OPR and submits fingerprints through a webcheck location?

(1) The program and individual will receive notification of preliminary approval generated from the OPR.

(2) The center will receive the JFS 01176 "Program Notification of Background Check Review for Child Care" from ODJFS and shall keep it on file, if not available in the OPR.

(a) For those individuals not eligible for employment, the center shall not hire the individual or shall terminate them from employment immediately upon receipt of the JFS 01176.

(b) Until preliminary approval is received from ODJFS, an administrator, child care staff member or employee hired on or after the effective date of this rule cannot engage in any assigned duties or be near children.

(c) A child care staff member with preliminary approval but not a JFS 01176 on file at the center or in the OPR shall not be left alone with children and shall be supervised at all times by another child care staff member with a JFS 01176 on file or in the OPR.

(d) Only child care staff members with a JFS 01176 on file at the center or in the OPR may be left alone with children.

(3) The individual will receive the JFS 01177 "Individual Notification of Background Check Review for Child Care" from ODJFS.

(a) If the individual believes the information received is not accurate, the individual may directly contact the agency that contributed the questioned information.

(b) If the individual disagrees with the employment eligibility decision made by ODJFS, a JFS 01178 "Request for Review of Background Check Decision for Child Care" shall be completed to request a review of the decision. The JFS 01178 shall be submitted within fourteen business days from the date on the JFS 01177.

(I) What happens after an individual submits a JFS 01178 to ODJFS?

If an individual requests a review of a background check decision pursuant to paragraph (H)(3)(b) of this rule:

(1) The program shall not allow the individual to be on-site at the program during the review by ODJFS.

(2) If the individual is determined to be eligible for employment, the program may allow the individual to be employed and shall keep the updated JFS 01176 on file pursuant to paragraph (H)(2) of this rule.

(J) What are the background check requirements if an individual becomes employed at another licensed program?

(1) Only the request for a background check for child care in the OPR is required if the individual meets all of the following:

(a) The individual has a current background check determination by ODJFS completed in the previous five years pursuant to this rule.

(b) The individual has been employed by a licensed child care center, licensed type A home, licensed type B home, approved day camp, a preschool or school-age

program approved to provide publicly funded child care or certified as an in-home aide or was a resident of a licensed type A home or licensed type B home in the previous one hundred eighty consecutive days.

(2) Upon receipt of the request, ODJFS will provide the JFS 01176 based on the existing background check determination to the new employer.

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Rule 5180:2-12-10 | Training and professional development requirements for a licensed child care center.

Rule 5180:2-12-10 was renumbered from 5101:2-12-10 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the health training requirements for a child care center?

(1) All child care staff members are to be currently trained in first aid and cardiopulmonary resuscitation (CPR) appropriate for the age and developmental levels of the children in care.

(a) First aid and CPR trainings are to be completed within the first ninety days of hire.

(b) Until all required individuals are current in the trainings, at a minimum, the center is to have at least one trained child care staff member on-site (in each building) during all hours of operation who meets this requirement.

(2) A center shall have at least one child care staff member on-site (in each building) during all hours of operation who is currently trained in the management of communicable disease.

(3) All child care staff members are to be currently trained in child abuse and neglect recognition and prevention.

(a) Child abuse and neglect recognition and prevention training is to be completed within the first sixty days of hire.

(b) Until all required individuals are current in the trainings, at a minimum, the center is to have at least one trained child care staff member on-site (in each building) during all hours of operation who meets this requirement.

(4) Trainings shall meet course and trainer requirements in appendix A to this rule.

(5) If a child care staff member meets the trainer requirements in appendix A to this rule for a health training, that person is considered to meet the training requirement for that health training pursuant to paragraphs (A)(1) and (A)(2) of this rule.

(6) Audiovisual or electronic media training shall not be used to meet the CPR training requirement pursuant to paragraph (A)(1) of this rule unless there is also an in-person component of the training.

(B) What are the ongoing professional development training requirements for the administrator and child care staff members?

(1) Complete a minimum of six clock hours of training annually each fiscal year. The fiscal year is defined as July first through June thirtieth.

(a) Training topics include those listed in appendix B to this rule.

(b) Health trainings taken pursuant to paragraph (A) of this rule may not be used to meet the professional development training requirements.

(c) Audiovisual or electronic media training may be used to meet the required six hours of annual training.

(2) Child care staff members hired between January first and June thirtieth of each year are not required to complete the professional development requirements until the following fiscal year.

(3) A person designated and employed as a substitute child care staff member is not required to meet the professional development requirements. When the substitute child care staff member is used more than ninety days annually between July first and June thirtieth, professional development requirements are to be met. The center is responsible for documenting the number of days the substitute child care staff member worked for a period of eighteen months.

(C) What verification is needed on file at the center to document the completed training?

(1) The health trainings shall be documented by one of the following:

(a) Verification from the Ohio professional registry (OPR).

(b) The JFS 01276 "Health Training Documentation for Child Care".

(c) Training cards or certificates issued by the training organization.

(2) The on-going professional development shall be documented by one of the following:

(a) Verification from the OPR.

(b) Transcript of completion of college courses from an accredited university, college, or technical college.

(i) One quarter credit hour equals ten clock hours of training.

(ii) One semester credit hour equals fifteen clock hours of training.

(c) The JFS 01307 "Professional Development Documentation for Child Care."

(d) Certificates indicating continuing education units (CEU). One CEU equals ten clock hours of training.

(e) Certificates issued by Ohio child welfare training centers.

(3) A child care center administrator or owner shall, within five business days, provide current staff with copies of their training documentation upon request or upon separation from employment for any records not verified in the OPR.

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Rule 5180:2-12-11 | Indoor and outdoor space requirements for a licensed child care center.

Rule 5180:2-12-11 was renumbered from 5101:2-12-11 on 01/02/2025.

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(A) What are the indoor space requirements for a center?

(1) There shall be at least thirty-five square feet of usable wall-to-wall indoor floor space for each child the center is licensed to serve.

(2) Usable indoor floor space shall not include bathrooms, hallways, storage rooms or other areas not available or not used for child care.

(3) Bathrooms may be included if they are used exclusively by children enrolled in the center.

(4) Areas included in the center's square footage shall be exclusively available for child care during all operating hours of the child care program.

(5) If the center is in a shared building, the center may identify a back-up space that is available for use on days the primary space is not available. When the back-up space is utilized, the space shall only be used for child care during that time and shall have building and fire approval.

(6) The public may use areas such as entry ways, hallways, bathrooms and other areas normally available for public use if such access does not constitute a risk or hazard to the health and safety of the children in care.

(7) The calculation of indoor space may include hallways, kitchens, storage areas and bathrooms not used exclusively by children and other areas not available for child care if either of the following apply:

(a) The center's license has been maintained since September 1, 1986; or

(b) A new license was issued due to the change of ownership of the center that was previously licensed prior to September 1, 1986.

(8) Dividers may be used to divide a room into smaller spaces to serve additional groups of children, provided the center ensures that the space maintains the indoor space square footage requirement pursuant to paragraph (A)(1) of this rule.

If used, dividers are to:

(a) Meet any requirements set by the department of commerce, local building department, state fire marshal or local fire safety inspector.

(b) Be made of non-porous material or other material that can be cleaned and sanitized.

(B) What are the additional space requirements for areas where there are groups that include children who are less than two and one half years of age?

The space shall:

(1) Be separate from space being used for groups of children two and one half years old and older.

(2) Be approved by the Ohio department of job and family services (ODJFS) prior to use for the care of children younger than two and one half years of age.

(3) Provide at least thirty-five square feet of floor space for each child per room or area.

(4) Be defined by a continuous permanent or non-permanent barrier that is at least thirty-six inches in height.

(C) What are the on-site outdoor space requirements for a center?

(1) The center shall have an on-site outdoor space that:

(a) Provides at least sixty square feet of usable space per child using the area at one time.

(b) Is located away from traffic or protected from traffic or animals by a continuous fence in good condition with functioning gates or a continuous natural barrier or a combination of fence and natural barrier. The fence or natural barrier shall ensure that children are not able to leave the outdoor play area unsupervised and shall ensure that any hazards from the outside cannot enter the outdoor play area without the staff being aware of them. Examples of natural barriers include, but are not limited to space, dense hedges, walls, permanently anchored dividers or partitions. A playground on the premises that is regulated by another state agency is exempt from this requirement.

(c) Has functional latches on gates which cannot be easily opened by young children if gates are used. Gates shall not be locked when children are present at the center.

(d) Provides access to bathroom facilities and drinking water during play times.

(e) Is free of foreign objects and trash during times children are outside playing. A trash can with a lid is permitted in the play area if it is emptied daily and kept in clean condition.

(f) Provides a shaded area. The shade may be naturally occurring from trees, building, or overhangs. The center may also install lawn umbrellas that are securely anchored or other structures that provide shade in a safe manner.

(2) Bodies of water (other than water tables designed for children to play in only with their hands) shall be separated from the play area by a fence or other physical barrier (the center door only is not a sufficient barrier) that prevents children from accessing the water.

(3) The play area(s) and equipment shall be inspected quarterly by the administrator or designee during the months that the program is in operation. The inspection shall be documented on the JFS 01281 "Child Care Playground Inspection Report" and kept on file for one year.

(D) What are the exemptions for having an on-site outdoor space?

(1) A center may be exempt if both of the following apply:

(a) The center has an indoor recreation area that has a minimum of one thousand four hundred forty square feet of space that is separate from the indoor space required by this rule and is regularly available and scheduled for daily use.

(b) There is a safe park or play area regularly available, scheduled for daily use in suitable weather and approved by the ODJFS. Access to this area shall be safe and convenient, and children shall be closely supervised during play and when going to and from the area.

(2) A center approved to use an off-site area may use the play space regardless of change of ownership unless it is determined, upon inspection, that the area or its accessibility is unsafe.

(E) What are the requirements for on-site and off-site outdoor equipment?

(1) Outdoor equipment, whether stationary or portable, shall be safe and designed to meet the developmental needs of all of the age groups of children using the space.

(2) Equipment, such as, but not limited to, climbing gyms, swings, and slides shall:

(a) Be placed out of the path of the area's main traffic pattern.

(b) Be anchored or stable and have all parts in good working order and securely fastened.

(c) Have all climbing ropes anchored at both ends and not capable of looping back on themselves creating a loop with an interior perimeter of five inches or greater.

(d) Have "S" hooks that are closed in order to prevent the chain from slipping off of the hook and prevents strangulation if they are used.

(e) Be free of rust, cracks, holes, splinters, sharp points or edges, chipped or peeling paint, lead hazards, toxic substances, protruding bolts, or tripping hazards.

(f) Have no openings that are greater than three and one half inches, but less than nine inches to avoid entrapment of the head or other body parts.

(g) Have protected barriers on platforms that are thirty inches high or higher. A protective barrier means an enclosing device around an elevated platform that is intended to prevent both inadvertent and deliberate attempts to pass through the device.

(h) Be assembled, installed and utilized according to manufacturer's guidelines.

(3) Functionally linked play equipment may be used if each piece of the adjacent equipment is not more than twelve inches apart for preschool-age children or eighteen inches apart for school-age children. Functionally linked play equipment means two or more play structures designed and installed adjacently to create one integral unit that provides more than one play activity for children.

(4) Sandboxes shall be covered with a lid or other covering when the program is closed. For programs operating twenty-four hours per day, this means sandboxes are covered during non-daylight hours.

(F) What are the requirements for a fall zone?

(1) Outdoor play equipment designated for climbing, swinging, balancing and sliding shall have a fall zone of protective resilient material on the ground under and around the equipment.

(a) The material may be one of the following, but not limited to, washed pea gravel, mulch, sand, wood chips or synthetic material such as rubber mats or tiles manufactured for this purpose.

(b) Equipment shall not be placed directly over concrete, asphalt, blacktop, dirt, rocks, grass or any other hard surface.

(c) Synthetic surfaces shall follow manufacturer's guidelines for depth.

(d) Protective resilient material depth for equipment shall be appropriate for the height and type of equipment as specified in appendix A to this rule.

(e) All loose fill materials, such as mulch, sand, wood chips, washed pea gravel shall be raked, as needed to retain their proper distribution and depth. Foreign materials are to be removed prior to use by children.

(2) All space around equipment designed for or observed being used for climbing, swinging, balancing or sliding shall extend a minimum of six feet in all directions from the perimeter of the equipment or a minimum of three feet in all directions if the equipment is exclusively used by children six months to twenty-three months of age.

(a) The fall zone for moving or swinging equipment is measured from the point of furthest extension.

(b) The fall zone between two stationary pieces of equipment shall be a minimum of nine feet. For equipment exclusively used by children six months to twenty-three months of age, the fall zone requirement is four and one-half feet.

(c) Fall zones shall be kept clear of all obstacles that children could run into or fall on top of including retaining devices such as, but not limited to, fencing, walls, landscape timbers and mulch retaining walls.

(d) Equipment used for climbing shall not be placed over carpet or mats that are not intended for use as surfacing for climbing equipment.

(3) Centers licensed as of January 1, 2007 that have fall zones meeting the requirements listed in paragraph (F)(1) of this rule are exempt from the requirements of (F)(2) of this rule, unless stationary equipment designed for or are observed being used for climbing, swinging, bouncing or sliding is added, replaced or relocated. When this type of equipment is added, replaced or relocated the center is to comply with the requirements of paragraphs (F)(1) and (F)(2) of this rule for all pieces of equipment designed or observed used for climbing, swinging, bouncing or sliding on that playground.

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Rule 5180:2-12-12 | Safe equipment and environment for a licensed child care center.

Rule 5180:2-12-12 was renumbered from 5101:2-12-12 on 01/02/2025.

Effective: *June 28, 2020* ***Promulgated Under:*** *119.03*

(A) What are the safe equipment requirements for a licensed child care center?

(1) Equipment, materials, and furniture shall be sturdy, safe, and easy to clean and maintain. They shall also be free of sharp points or corners, splinters, or protruding nails; loose or rusty parts; peeling or chipping paint; or other hazardous features.

(2) Furniture, equipment and materials which are not usable due to breakage or being a hazard shall be removed immediately and stored away from children until repaired or replaced.

(3) Air conditioners, heat pumps, electric fans and space heaters shall be mounted or placed out of the children's reach or have safeguards which prevent children from being injured. All heaters utilized by the child care center shall be approved in writing by the fire department and/or the building department.

(4) Indoor swings (excluding infant swings), slides, climbers, and climbing apparatuses shall not be placed over carpet, concrete, tile, or any similarly hard surface. There shall be shock absorbent protective covering under and around this equipment. If climbing equipment is over three feet high, landing mats at least one and one half inches thick shall be used. The protective covering shall be used and placed according to manufacturers' guidelines.

(5) All children's equipment shall be used in accordance with the manufacturer's guidelines.

(6) Trampolines, ball pits, and inflatable play equipment intended for climbing and bouncing, including but not limited to slides and bounce houses shall not be permitted

for use at the center.

(B) What are the safe environment requirements for a licensed child care center?

(1) Weapons, firearms and ammunition materials shall not be on the premises. Weapons and firearms include air rifles, hunting slingshots and any other projectile weapon.

(2) Each of the following groups will be permitted to have the following weapons in a child care center, unless specifically not permitted by the child care center owner. Although permitted to be in the program, the weapons shall not be accessible to children.

(a) Handguns may be carried by an individual with a valid concealed handgun license and must be kept out of sight of the children.

(b) Weapons may be carried by an active duty member of the U.S. armed forces if also carrying valid military identification and documentation of successful completion of firearms training that meets or exceeds the training requirements described in division (G)(1) of section 2923.125 of the Revised Code.

(c) Weapons may be carried by a law enforcement official who can document that his or her jurisdiction requires ready and immediate access to the weapon.

(3) Illegal drugs and substances shall not be on the premises. Alcohol shall only be kept in areas not approved or used for child care.

(4) In accordance with section 2923.1212 of the Revised Code, the center shall post a sign that contains a statement in substantially the following form: "Unless otherwise authorized by law, pursuant to the Ohio Revised Code, no person shall knowingly possess, have under the person's control, convey or attempt to convey a deadly weapon or dangerous ordinance onto these premises."

(5) The center shall maintain an indoor temperature of at least sixty-five degrees Fahrenheit. If the center's indoor temperature exceeds eighty-five degrees Fahrenheit, ventilation that produces air movement or air conditioning shall be provided.

(6) Children in care shall be protected from any items and conditions which threaten their health, safety, and well being, including but not limited to: stoves, bodies of water, window covering pull cords, telephone cords, electrical cords, extension cords, lead hazards, asbestos, wells, traffic, employee's personal belongings and other environmental hazards and dangerous situations. If a potential lead hazard is identified, ODJFS will make a referral to the appropriate agency.

(7) If area rugs are used, they shall have a nonskid backing and floor surfaces shall be maintained to not cause a tripping hazard.

(8) Toys or other materials small enough to be swallowed shall be kept out of the reach of infants and toddlers.

(9) Cleaning and sanitizing equipment and supplies shall be stored in a space that is inaccessible to children. Cleaning agents, aerosol cans and all other chemical substances shall be stored in a designated area in their original containers and/or clearly labeled.

(a) School-age children may use cleaning equipment, supplies, and cleaning agents with adult supervision.

(b) The cleaning equipment, supplies, and cleaning agents may be accessible in spaces only used by school-age children.

(10) Mercury thermometers shall not be used.

(11) Electrical outlets, including surge protectors, within the reach of children shall have child proof receptacle covers when not in use unless designed with safety guards,

except for space used only by school-age children.

(12) Renovations and remodeling to areas in which child care is provided shall be conducted in a safe manner to ensure that lead poison hazards are not introduced into the environment as required by Chapter 3742. of the Revised Code.

(13) Unless toilets and sinks are of suitable height for use by the children, the center shall provide a sturdy, nonslip platform on which the children may stand.

(14) Lawnmowers, sharp tools, machinery and other equipment shall not be used or stored where children have access to them.

(15) All areas used by children shall be ventilated and shall provide protection from rodents, insects and other hazards.

(16) Aerosol spray products shall not be used in rooms where children are in attendance.

(C) What are the regulations for having pets in a licensed child care center?

(1) Pets and animals shall be permitted if they present no apparent threat to the safety or health of the children.

(2) All pets shall be properly housed, cared for, licensed and inoculated. All local and state ordinances governing the keeping of animals (exotic or domesticated) shall be followed and updated as required. Verification of license and compliance with local and state requirements and inoculations, for each pet requiring such license or inoculations, or regulated by local or state government shall be on file at the center.

(3) Children shall not be directly exposed to animal urine or feces inside the program or in the outdoor play area.

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Rule 5180:2-12-13 | Sanitary equipment and environment for a licensed child care center.

Rule 5180:2-12-13 was renumbered from 5101:2-12-13 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the requirements to provide and maintain a clean environment, furniture, materials, and equipment in a licensed child care center?

(1) Toilet tissue, liquid soap, running water, and individually assigned towels, disposable towels or air dryers shall be provided in all bathrooms. Toilets and bathroom sinks shall be in good working condition. Toilets shall be flushed after each use.

(2) Equipment, furnishings, and materials shall be constructed of materials to facilitate cleaning.

(3) Accumulated trash and garbage are not to be stored in an area that has been approved for child care.

(4) The center shall be cleaned daily and kept in a sanitary condition at all times. Cleaning and sanitizing shall not take place while rooms are occupied by children, except for general cleanup activities such as sweeping, vacuuming, mopping and wiping off tables which are part of the daily routine. The cleaning and sanitizing schedule contained in appendix A to this rule shall be followed.

(5) The premises shall be kept clean to prevent an infestation by insects or rodents.

(6) If the center's water is not publicly supplied, the center shall contact the Ohio environmental protection agency (EPA) to determine if it qualifies as a public water system.

(a) If the water supply qualifies as a public water system, the center shall comply with the Ohio EPA requirements.

(b) If the water supply does not qualify as a public water system, the center shall contact the local health department to have the water tested and follow any additional requirements requested by the health department. The center shall retain a copy of the water test and make it available upon request.

(7) On-site sewage disposal systems shall not present a public health hazard.

(B) What are the handwashing requirements for a center?

(1) Handwashing shall occur in a handwashing sink.

(2) Commercially manufactured non-permanent sinks may be used if fresh water and waste water are inaccessible to children and disposed of in a sanitary manner.

(3) Handwashing requirements for center child care staff members, employees and children are detailed in appendix B to this rule.

(C) What are the requirements for a smoke free environment in a center?

The center shall provide a smoke free environment for the children during the hours that child care is being provided as detailed in appendix C to this rule and be in compliance with the smoking ban pursuant to section 3794.02 of the Revised Code.

(D) What are the requirements for toothbrushing in a center?

Centers who provide toothbrushing shall:

(1) Label each toothbrush with child's name and store with bristles to air dry in such a way that the toothbrushes cannot contact or drip on each other and the bristles are not in contact with any surface.

(2) Ensure that when a single tube of toothpaste is used for more than one child a pea sized amount shall be dispensed onto a clean piece of paper or paper product for each child.

(3) Discard and replace toothbrushes every three months or if the toothbrush becomes contaminated.

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Rule 5180:2-12-14 | Transportation and field trip safety for a licensed child care center.

Rule 5180:2-12-14 was renumbered from 5101:2-12-14 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What is to be available on all trips, including routine walking trips?

The center is to:

(1) Have written and signed permission from the parent before transporting or escorting a child away from the center for field trips and routine trips as detailed in appendix A to this rule. The permission slips are to be kept on file at the center for one year from the date of the trip.

(2) Attach to each child on a routine or field trip, except children being transported only to and from school or to and from home, identification containing the center's name, address, and a telephone number to contact in the event the child becomes lost.

(3) Have a completed copy of the JFS 01234 "Child Enrollment and Health Information for Child Care" for each child on the trip, except routine walks.

(4) Have first aid supplies as required by rule 5101:2-12-16 of the Administrative Code.

(5) Have the completed JFS 01236 "Child Medical/Physical Care Plan for Child Care" for any child who has a health condition which could need medication, special procedures or precautions during the course of the trip. The center is also to take supplies needed to provide such treatment and medications that may need to be administered during the trip.

(6) Have a working cellular phone or other means of immediate communication. Cellular phones are not to be used by a driver while the vehicle is in motion.

(7) Ensure that the child care staff member responsible for each child on the field trip maintains a written record of which vehicle each child is being transported in and the cellular phone number of the adult in that vehicle who could be contacted in an emergency.

(8) Ensure that a person trained in cardiopulmonary resuscitation (CPR), first aid and management of communicable disease in accordance with rule 5101:2-12-10 of the

Administrative Code is present in the vehicle for routine trips and field trips and at the destination on all field trips. More than one person may be used to meet this requirement.

(9) Ensure that if the vehicle used to transport children is manufactured with seat belts, they are to be utilized by adults and children, no more than one person may be strapped in each seat belt. Children or adults are not to be permitted to stand in a moving vehicle, sit on the floor or ride in a vehicle where all seats are not securely anchored.

(10) Not leave children in the vehicle when it is being refueled except when a trip is of such a length as to need refueling after starting with a full tank.

(B) What are the ratio and supervision requirements for trips, including routine walking trips?

(1) The staff/child ratio requirements of rule 5101:2-12-18 of the Administrative Code are to be met on field trips and routine trips. Children are to be assigned to specific child care staff members for all field trips.

(2) Parents, guardians or adults authorized by the center may be drivers on field trips as long as staff/child ratio requirements are met at the destination.

(3) One additional adult is to be present in the vehicle whenever five or more children are being transported and one or more of the children are infants.

(4) One additional adult is to be present in the vehicle when there are seven or more children being transported and no infants are present.

(5) One additional adult is to be present in the vehicle when there are ten or more school-age children, or the driver is to have a means of immediate communication,

such as a cellular phone, to summon an additional adult when only school-age children are transported in one vehicle.

(6) The additional adult in the vehicle may be the driver, parent or volunteer.

(7) The vehicle is to be checked at completion of each trip to ensure that no child has been left on the vehicle.

(8) During routine walking trips or walking field trips, one additional adult is to be present when there are five or more infants or a combination of seven or more toddlers, preschool and school-age children or for ten or more school-age children if the group of children on the walking trip includes only school-age children.

(9) While children are being transported from their homes or schools directly to the center or from the center directly to their homes or schools, the children are not to count in the center's capacity.

(C) What are the driver requirements for employees and child care staff members of the center?

(1) The employee or child care staff member driver is to:

(a) Be at least eighteen years old.

(b) Hold a currently valid driver's license required for the type of vehicle driven in accordance with Ohio law.

(i) A copy of each driver's current driver's license is to be kept on file at the center.

(ii) The center is responsible for ensuring that the copy of the driver's license on file is kept current.

(c) Be free from the influence of any substance which could impair driving abilities.

(d) Ensure that all passengers, which includes the driver, adhere to the state of Ohio's child restraint law found in section 4511.81 of the Revised Code when transporting children in care.

(e) Not allow children under twelve years of age to ride in the front seat of any vehicle.

(f) See that each child safely boards and exits the vehicle from the curb side of the street whenever physically possible and out of the path of moving vehicles. Drop off or pick up at which it is not possible to board and exit from the curb side is to be conducted in a safe manner and with close supervision by the child care staff member responsible for the children.

(g) Complete the Ohio department of job and family services (ODJFS) child care transportation training in the Ohio professional registry (OPR).

(i) A trained child care staff member is not required in the vehicle on field trips when parents are providing the transportation.

(ii) A trained child care staff member is not required when public transportation is being utilized or if the school district is providing transportation to or from the center .

(h) Practice the emergency exiting procedures.

(i) The emergency exiting procedures are to be practiced with the children on a monthly basis.

(ii) This practice is to occur during months that the vehicle is used for transporting children and is to take place on the center's premises or another

safe location that is protected from traffic and other hazards to ensure the safety of the children involved.

(iii) A written record is to be kept of the dates when the emergency exiting procedure was practiced and the staff that were involved.

(2) Parents, who are not employed by the center, who use their vehicles for transportation to occasional field trips do not have to meet the requirements of paragraph (C) of this rule. For the purposes of this rule, "occasional" means three or fewer times per calendar year.

(3) The requirements outlined in paragraph (C) of this rule do not apply to public transportation drivers or companies contracted by the program and who are not employees or child care staff members.

(4) Training for transportation is to be documented in the OPR or kept on file at the center in the employee's or child care staff member's file for review by the ODJFS.

(D) What are the vehicle requirements for the center?

(1) Any vehicle operated by the center or driven by an employee or child care staff member to transport children for routine trips or field trips is to be mechanically safe at all times.

(2) Requirements for center vehicles used for transportation of children are listed in appendix B to this rule.

(3) The personal vehicles driven by parents who are not employed by the center are not required to meet the requirements of paragraph (E) of this rule.

(E) When are vehicles used for transporting children to be inspected?

The vehicles used for transporting children are to be inspected weekly by child care center staff and annually by an automotive service excellence (ASE) certified mechanic, federal motor carrier safety administration (FMCSA) safety inspector, or the Ohio state highway patrol.

(1) The center is to maintain documentation that staff have performed weekly inspections followed by any necessary repairs or other appropriate actions, for the following items:

(a) A visual inspection of the vehicle's tires for wear and adequate pressure.

(b) A visual inspection for working headlights and taillights, signals, mirrors, wiper blades and dash gauges.

(c) An inspection for properly functioning child and driver restraints.

(d) An inspection for properly functioning doors and windows.

(e) An inspection for, and cleaning of, debris from the vehicle's interior.

(2) The annual safety check is to be completed and approved prior to the use of any vehicle for transporting children, except that a new vehicle purchased directly from the dealer is to have the safety check completed before one year from the date of purchase. The bill of sale from the vehicle purchase is to be maintained on file at the center to verify compliance.

(a) Verification of the safety check is to be documented on the JFS 01230 "Vehicle Inspection Report for Child Care" and include notation and correction of any safety violation, and is to be maintained on file at the center for review by the ODJFS.

(b) A vehicle sticker issued from the Ohio state highway patrol indicating the vehicle has passed a school bus or personal vehicle inspection may be used to meet

the annual safety check requirement.

(c) School buses and multifunction school activity buses which are inspected and licensed by the Ohio state highway patrol are exempt from the annual safety check required in this rule. The center is to prepare the buses before each trip following the Ohio department of education's operational and safety rules of Chapter 3301-83 of the Administrative Code.

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Rule 5180:2-12-15 | Child record requirements for a licensed child care center.

Rule 5180:2-12-15 was renumbered from 5101:2-12-15 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the requirements for the JFS 01234 "Child Enrollment and Health Information" for a licensed child care center?

The center shall:

(1) Have a completed JFS 01234 on file for each child by the first day of attendance.

(2) Ensure the JFS 01234 is reviewed at least annually by the parent and updated as needed when information changes. The parent and administrator shall initial and date the form when the information is reviewed or updated.

(3) Send the child's JFS 01234 with any child who is being transported for emergency assistance.

(4) Maintain a current copy of the completed JFS 01234 for each child in care in a location that can be easily and quickly accessed and removed from the center if there is an emergency that requires the children to be moved to another location.

(B) What are the child medical statement requirements for a licensed child care center?

(1) The center shall secure and have on file verification of a medical examination for each child. Children who attend a grade of kindergarten and above in an elementary school are exempt from this requirement.

(2) The medical statement shall be on file at the center within thirty days of the child's first day of attendance and updated every thirteen months thereafter from the date of the examination.

(3) The medical statement shall contain the following information:

(a) The child's name and birth date.

(b) The date of the medical examination, which is to be no more than thirteen months prior to the date the form is signed.

(c) A statement that the child has been examined and is in suitable condition for participation in group care.

(d) The signature, business address and telephone number of the physician, as defined in Chapter 4731. of the Revised Code, physician's assistant (PA), advanced practice registered nurse (APRN) or certified nurse practitioner (CNP) who examined the child.

(e) A record of the immunizations that the child has had, specifying the month, day and year of each immunization. This record may be an attachment to the medical statement.

(f) A statement from the physician, PA, APRN, or CNP that the child has been immunized or is in the process of being immunized against the diseases required by division 5104.014 of the Revised Code and found in appendix A to this rule or a statement that the child meets one of the following:

(i) A statement from a physician, PA, APRN, or CNP that an immunization against the disease is medically contraindicated for the child.

(ii) A statement from a physician, PA, APRN, or CNP that an immunization against the disease is not medically appropriate for the child's age.

(iii) A statement from the child's parent that he or she has declined to have the child immunized against the disease for reasons of conscience, including religious convictions.

(C) What are the health care plan requirements for caring for children with a specific health condition in a licensed child care center?

(1) The JFS 01236 "Medical/Physical Care Plan for Child Care" is to be used for children with a condition or diagnosis that require the following:

(a) Monitoring the child for symptoms which require the staff to take action.

(b) Ongoing administration of medication or medical foods. Medical food means food that is formulated to be consumed under the supervision of a physician, PA, APRN, or CNP and which is intended for the specific dietary management of a disease or condition.

(c) Administering procedures which require staff to be trained on those procedures.

(d) Avoiding specific food(s), environmental conditions or activities.

(e) A school-age child to carry and administer their own emergency medication.

(2) The center is to:

(a) Ensure that there is a completed JFS 01236 for each condition per child.

(b) Ensure that all child care staff members who are trained to perform the medical procedure have signed the JFS 01236.

(c) Ensure that there is at least one child care staff member caring for the child at all times who has signed the JFS 01236 on the child's condition. This includes on-site at field trips.

(d) Implement and follow all requirements of each child's JFS 01236.

(e) Keep each JFS 01236 in a location that can be easily and quickly accessed, including being removed from the center if there is an emergency that requires the children to be moved to another location.

(3) The JFS 01236 shall be reviewed by the parent at least annually and updated as needed, including an updated list of trained staff members, if applicable. The parent and administrator shall initial and date the form when the information is reviewed or updated.

(4) The JFS 01236 shall be on file with the center by the first day of attendance or upon confirmation of a health condition.

(5) If the center suspects that a child has a health condition, the center may require a physician's statement within a designated timeframe.

(6) Only staff members trained on the child's needs and required procedures shall be permitted to perform medical procedures or other action needed for a health condition or special need.

(D) What information regarding children's records can be shared?

Children's records shall be confidential but shall be available to the Ohio department of job and family services for the purpose of administering Chapter 5104. of the Revised Code and Chapter 5101:2-12 of the Administrative Code. The immunization records shall be subject to review by the Ohio department of health (ODH) for disease outbreak control and for immunization level assessment purposes.

(E) How long are child records to be kept on file at the center?

All child medical statements, JFS 01217 "Request for Administration of Medication for Child Care," JFS 01234 and JFS 01236 as well as all written permission from parents or physicians are to be kept on file for twelve months from the date the form is signed or updated, whichever is later, even if the child no longer attends the program or the form is no longer required for the child.

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(A) What are the medical, dental, and general emergency requirements for a licensed child care center?

The center shall:

(1) Have a written plan for medical or dental emergencies on the JFS 01242 "Medical, Dental and General Emergency Plan for Child Care." The plan shall be completed, implemented when necessary, and shall be posted, readily in view in each classroom and other spaces used by the children.

(2) Complete the JFS 01201 "Dental First Aid" and post in a location readily available to center staff and parents.

(3) Post a weather alert plan that includes the details listed in paragraph (H) of this rule and a fire plan in each classroom and other spaces used by the children. The plan shall include a diagram indicating evacuation routes.

(4) Conduct monthly fire drills at varying times. Written documentation of these drills shall be kept on-site.

(5) Conduct monthly weather emergency drills in the months March through September. Written documentation of these drills shall be kept on-site.

(6) Conduct emergency/lockdown drills in each quarter of the calendar year. Written documentation of these drills shall be kept on-site.

(B) What are the first aid kit requirements for a licensed child care center?

(1) The first aid kit shall be kept in a clearly marked, unlocked container out of the reach of children.

(2) One complete kit shall be readily available for every seventy-five children at the center. Centers that operate on separate floors or separate buildings shall have a complete kit on each floor and in each building.

(3) The first-aid container shall contain all of the items listed in appendix A to this rule.

(C) What are the specific procedures the licensed child care center needs to follow for standard precautions?

(1) Blood spills shall be treated cautiously and decontaminated promptly. Disposable vinyl gloves shall be worn during contact with blood or bodily fluids which contain blood, such as vomit or feces in which blood can be seen.

(2) Surfaces contaminated with blood or bodily fluids containing blood shall first be cleaned with hot, soapy water and then sanitized with an appropriate bleach solution which is prepared on a daily basis, according to product guidelines, or other acceptable disinfectant solution which is environmental protection agency (EPA) rated as hospital disinfectant with a label claim for mycobactericidal activity.

(3) Disposal of materials that contain blood requires a sealable, leakproof plastic bag or double bagging in plastic bags that are securely tied.

(4) Non-disposable items, such as clothing that contain blood, shall be placed in a sealable, leakproof plastic bag or double bagged in plastic bags that are securely tied and sent home with the child.

(5) Sharp items used for procedures on children with special care needs, such as lancets for finger sticks or syringes, require a disposable container called a "sharps container." This is a container made out of durable, rigid material which safely stores the lancets or needles until they are disposed of properly. Sharps containers must be stored out of the reach of children.

(D) What are the communicable disease requirements for a licensed child care center?

(1) Any child enrolled and attending the center with signs or symptoms of illness listed in appendix B to this rule shall be immediately isolated and discharged to his parent or guardian or person designated by the parent or guardian.

(2) The JFS 08087 "Communicable Disease Chart" shall be posted in a location readily available to parents, child care staff members and employees. The chart is to be displayed in the size available in the Ohio department of job and family services (ODJFS) forms central in order for individuals to easily read, identify and respond to communicable diseases.

(a) The center is to follow the requirements listed on the JFS 08087.

(b) If the communicable disease is required to be reported to the local health department, the center is to report the communicable disease to ODJFS in accordance with paragraph (G) of this rule by the end of the next business day.

(3) No later than the end of the next business day, the center shall notify parents when their child has been exposed to a communicable disease listed on the JFS 08087.

(4) The center shall release employees and child care staff members who have a communicable disease or who are unable to perform their duties due to illness.

(E) When shall a child care staff member complete the JFS 01299 "Incident/Injury Report for Child Care" ?

(1) Staff shall complete the JFS 01299 and provide a copy to the child's parent or the person picking up the child on the day of the incident or injury if:

(a) A child becomes ill or receives an injury which requires first aid treatment.

(b) A child is transported in accordance with this rule to a source of emergency assistance.

(c) A child receives a bump or blow to the head.

(d) An unusual or unexpected incident occurs which jeopardizes the safety of a child or employee of a center, such as a child leaving the center unattended, a vehicle accident with or without injuries or exposure of children to a threatening person or situation.

(2) Copies of the JFS 01299 shall be kept on file at the center for at least one year and shall be available for review by the Ohio department of job and family services (ODJFS).

(F) What is a serious incident?

(1) Death of a child at the center.

(2) An incident, injury, or illness that requires professional medical consultation or treatment for a child.

(3) An unusual or unexpected incident which jeopardizes the safety of a child, child care staff member or employee of a center.

(4) An incident defined as a serious risk non-compliance in appendix A to rule 5101:2-12-03 of the Administrative Code.

(G) What does the center do if there is a serious incident?

(1) The center shall log in to http://oclqs.force.com by the next business day to report the incident, as defined in paragraph (F) of this rule.

(2) This notification does not replace reporting to the public children services agency (PCSA) if there are concerns of child abuse and neglect as required by rule 5101:2-12-19 of the Administrative Code.

(3) The center may print the completed serious incident report in OCLQS and give to the parent to meet the parent notification requirements of paragraph (E) of this rule.

(4) If a child is transported by anyone other than a parent for emergency treatment, the child's health and medical records required by rule 5101:2-12-15 of the Administrative Code are to accompany the child. The center administrator or a child care staff member is to stay with the child until the parent assumes responsibility for the child's care.

(H) What are the disaster plan requirements for a center?

The center is to develop a written disaster plan and train child care staff members and employees on the plan annually. Written documentation of this training is to be kept on-site.

(1) The plan shall include procedures that will be used to prepare for and respond to the following types of emergency or disaster situations:

(a) Weather emergencies and natural disasters which include severe thunderstorms, tornadoes, flash flooding, major snowfall, blizzards, ice storms or earthquakes.

(b) Emergency outdoor or indoor lockdown or evacuation due to threats of violence which includes active shooter, bioterrorism or terrorism.

(c) Emergency or disaster evacuations due to hazardous materials and spills, gas leaks or bomb threats.

(d) Outbreaks, epidemics or other infectious disease emergencies.

(e) Loss of power, water or heat.

(f) Other threatening situations that may pose a health or safety hazard to the children in the center.

(2) The disaster plan is to include details for:

(a) Shelter in place or evacuation, how the center will care for and account for the children until they can be reunited with the parent.

(b) Assisting infants and children with special needs and/or health conditions.

(c) Reunification with parents.

(i) Emergency contact information for the parents and the center.

(ii) Procedures for notifying and communicating with parents regarding the location of the children if evacuated.

(iii) Procedures for communicating with parents during loss of communications, no phone or internet service available.

(d) The location of supplies and procedures for gathering necessary supplies for staff and children if required to shelter in place.

(e) What to do if a disaster occurs during the transport of children or when on a field trip or routine trip.

(f) Making the plan available to all child care staff members and employees.

(g) Training of staff or reassignment of staff duties as appropriate.

(h) Updating the plan on a yearly basis.

(i) Contact with local emergency management officials.

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Rule 5180:2-12-17 | Programming and materials for a licensed child care center.

Rule 5180:2-12-17 was renumbered from 5101:2-12-17 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the programming requirements for a licensed child care center?

The requirements include:

(1) Posting the daily schedule for each age group in each classroom.

(2) Providing opportunities for both quiet and active play suitable to the developmental levels and abilities of each child in care.

(3) Providing activities to promote the children's physical, social-emotional, cognitive and language development.

(4) Providing opportunities for periods of child initiated activities such as, imaginative play, language development, and creative activities.

(5) Providing outdoor play in suitable weather for any infant over twelve months of age, toddler, preschool, and school-age child in attendance four or more consecutive daylight hours. Suitable weather is at a minimum of twenty-five to ninety degrees Fahrenheit.

(6) Indoor gross motor play such as, climbing, jumping, running, riding wheel toys, yoga, other physical fitness or music and movement on days when outdoor play is not provided.

(B) What materials and equipment are required for a licensed child care center?

The center shall:

(1) Provide durable furniture such as tables and chairs. This furniture shall be child sized or safely adapted for use by children.

(2) Provide developmentally appropriate play materials to be used as part of the daily schedule. These materials shall be readily accessible, and arranged in an orderly manner so that children have opportunities to select, remove, and replace play materials with minimal assistance during the day.

(a) The center shall have materials from each category in appendix A to this rule for infants, toddlers and preschool-age children.

(b) The center shall have materials from at least five of the nine categories in appendix A to this rule for school-age children.

(3) Ensure that equipment, materials, and furnishings provided for both indoor and outdoor play are:

(a) Varied and adequate to meet the developmental needs of the children.

(b) Sufficient in quantity that each child can be actively involved in an activity.

(4) Designate an area where children can individually store their personal belongings. This area shall not block walkways or evacuation routes.

(5) Designate an area for quiet activities.

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Rule 5180:2-12-18 | Group size and ratios for a licensed child care center.

Rule 5180:2-12-18 was renumbered from 5101:2-12-18 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the requirements for staff/child ratios and maximum group size for a licensed child care center?

(1) The center shall ensure that required child care staff members/child ratios and maximum group size limitations are maintained at all times in accordance with appendix A to this rule. The center shall post appendix A to this rule in a noticeable area in the center.

(2) Child care staff members shall not be counted in the staff/child ratio when engaged in duties or activities that interfere with supervision of children.

(3) There shall be at least one other employee or child care staff member at the center if there are seven or more children in the building.

(4) Children shall be organized and assigned to a permanent group in consultation with parents and in accordance with the maximum group size detailed in appendix A to this rule.

(5) A child with special needs shall be included in the group that best meets the child's development needs.

(6) The center shall not exceed the license capacity at any time.

(a) Children on routine trips to and from home, do not count in the center's capacity.

(b) Children on routine trips, other than to and from home, and on field trips do count in the center's capacity.

(7) Group size limitations shall not be interpreted to apply during nap time, evening sleep time, meal time, snack time, outdoor play, field trips, routine trips or special occasions.

(B) What are the requirements when multiple age groups are combined?

(1) If two or more age groups are combined, the staff/child ratio shall be maintained for the age of the youngest child in the group. This includes when children are visiting the next older age group for transitioning purposes.

(2) If no more than one child two and one-half years of age or older is permanently assigned to a group in which all the other children are in the next older group, the staff/child ratio and maximum group size shall be determined by the older children.

(3) All age groups may be combined when there are twelve or fewer children in the center.

(C) What are the requirements when multiple groups are combined in a shared undivided space?

Two or more groups of children may be combined in the shared space if all of the following are met:

(1) All of the children are two and a half or older.

(2) The total number does not exceed the occupancy limit for the space or thirty-five square feet per child (whichever is less).

(3) Ratio is maintained pursuant to this rule at all times.

(D) What are the requirements for transitioning children into the next age group?

(1) The center shall have available in the classrooms, a copy of a signed transition agreement between the parent and the center.

(2) Preschool children may transition to the school-age group at the conclusion of the school year before kindergarten and be counted as school-agers for ratio.

(E) Can school-age only programs double ratio to allow access to the program?

(1) If the program serves only school-age children, a group of school-age children may be left with only one child care staff member while the other child care staff member leaves the room to allow access to the program.

(2) Both child care staff members shall have a working communication device to contact each other while one child care staff member is out of the room.

(3) The child care staff member shall return to the group after allowing access to the program.

(F) What are the requirements for child care centers to keep an attendance record?

(1) The program shall have written documentation of the following for each child:

(a) The name and birth date of the child.

(b) The assigned group for the child.

(c) The child's weekly schedule.

(d) The time (hours and minutes) of the child's arrival and departure to the program, including transportation by the program. Ohio's automated child care system cannot be used to meet this written documentation requirement.

(e) The original written documentation shall be kept for a period of one year. Attendance documentation shall remain at the center at all times.

(2) Each group shall have a method for tracking the children in the group. This tracking method shall include the child's name and date of birth and shall remain with the group at all times throughout the day including outdoor play, emergency evacuations

and when groups are combined. The tracking shall be updated throughout the day as children enter or leave the group.

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Rule 5180:2-12-19 | Supervision of children and child guidance for a licensed child care center.

Rule 5180:2-12-19 was renumbered from 5101:2-12-19 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the requirements for supervision by child care staff members?

Each child care staff member shall:

(1) Leave no child unsupervised. Supervision means the child care staff members have knowledge of a child's needs and accountability for his or her care at all times, including but not limited to, developmental and behavioral needs and parental preferences. Supervision includes awareness of and responsibility for the activity of each child and being near enough to respond and reach children immediately including responding to the child's basic needs and protecting them from harm.

(2) Ensure all children in care are within sight and hearing of child care staff members at all times, except as listed in paragraph (B) of this rule. Within sight and hearing

means without the use of mechanical devices such as baby monitors, video cameras or walkie talkies. The use of mirrors to view children in another room does not meet the supervision requirements of this rule.

(3) Not be under the influence of any substance that impairs the child care staff member's ability to supervise children and/or perform duties.

(4) Always have immediate access to a working telephone on the premises which is available and capable of making outgoing calls and receiving incoming calls.

(5) Only release a child to the parent or to a person who has been previously approved by the parent.

(6) Not permit children to be exposed to inappropriate language or media.

(7) Supervise outdoor play.

(a) The child care staff member shall remain outdoors with the children at all times.

(b) The child care staff member shall be able to summon another adult without leaving the group unsupervised.

(c) When the outdoor play space is not on the premises, child care staff members shall accompany and supervise all children in transit and at the outdoor play space.

(B) What are the requirements for supervision of school-age children?

(1) School-age children may run errands inside the building, use the restroom, or engage in a short term activity which poses no physical risk to their safety alone or in groups of no more than six children without adult supervision as long as the following conditions are met:

(a) Children are within hearing distance of a child care staff member, without the use of electronic equipment.

(b) The child care staff member checks on the children who are in kindergarten through third grade at least every five minutes until they return to the group.

(c) The child care staff member checks on the children in fourth grade or higher at least every ten minutes until they return to the group.

(d) The center has exclusive use of the child care space being used by the children.

(2) With written parent permission, school-age children may leave the center for specific activities.

(a) These activities include:

(i) Walking to and from the center or school.

(ii) Walking home or to another destination.

(iii) Participation in activities inside the building that are sponsored by another group.

(b) The written permission shall specify:

(i) Child's name.

(ii) Location of the activity.

(iii) Arrangements for going to and from the activity.

(iv) Start and end time of the activity.

(v) Time period for when permission is given.

(vi) Parent's signature and date.

(C) What are the child guidance techniques to be used in the licensed child care center?

(1) All employees shall follow appendix A to this rule regarding guidance techniques to be used with children.

(2) The center shall communicate and consult with the parent prior to implementing a specific behavior management plan. This plan shall be in writing and signed by the parent and shall be consistent with the requirements of this rule.

(3) When a child is expelled from the center for a behavioral reason, the expulsion is to be reported in the Ohio child licensing and quality system (OCLQS) in accordance with paragraph (G) of rule 5101:2-12-16 of the Administrative Code.

(D) What are the child abuse and/or neglect reporting requirements?

If the owner, administrator, employee or child care staff member suspects that a child has been abused or neglected, he or she shall immediately notify the public children services agency (PCSA).

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Rule 5180:2-12-20 | Sleeping and napping requirements for a licensed child care center.

Rule 5180:2-12-20 was renumbered from 5101:2-12-20 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) What are the sleep and nap requirements for a licensed child care center?

(1) The licensed child care center shall provide a quiet space for children who want to rest, nap, or sleep.

(2) Nap and rest time shall be in accordance with the developmental needs of the child.

(3) Rest or nap areas shall be lighted to allow for visual supervision of all children at all times.

(4) Any child who does not fall asleep during a designated nap time shall have the opportunity to engage in quiet activities.

(5) Evacuation routes shall not be blocked by resting or napping children. Each child shall have a free and direct means of escape, and the provider shall have a clear path to each resting child.

(6) Cribs shall be separated from the play space by a safe and sturdy physical barrier which does not impair the ability of child care staff to supervise infants by sight and hearing. Sight and hearing is when the child care staff can see the infants in and out of their cribs and hear their sounds. The barrier shall provide for safe accessibility.

(7) Ratio may be doubled for no more than two hours during nap time, and shall only be doubled if all of the children in the group are on cots or on mats, if the group does not include any infants and if there are enough child care staff members in the building to meet staff/child ratio pursuant to rule 5101:2-12-18 of the Administrative Code for the group.

(B) What are the crib requirements for a licensed child care center?

(1) Unless the infant meets the requirements of paragraph (D) of this rule, each infant in attendance shall have a separate crib labeled with their name on it that meets the following requirements:

(a) Any crib manufactured before June 28, 2011 shall have a certificate of compliance (COC) on file. The center may have to contact the manufacturer of the crib to receive a COC if they do not request one from the retailer when they purchase the crib.

(b) Cribs with a documented manufacture date after June 28, 2011 have to meet the new federal standards to be sold, so they do not require a COC. The date of manufacture shall be attached to the crib.

(c) Cribs shall be used according to manufacturer's instructions.

(d) Each crib shall be of sturdy construction and have:

(i) Closely spaced bars with corner posts that do not exceed one sixteenth of an inch above the top of the end panel.

(ii) Spaces between the bars of the crib and between the bars and end panels of the crib shall not exceed two and three-eighths inches.

(e) Cribs shall be used with the mattress supports in their lowest positions and the sides in the highest position.

(f) Each crib shall have a firm mattress that is at least one and one half inches thick.

(g) The space between the mattress and the side or end panels of the crib shall not exceed one and one-half inches.

(h) Each mattress shall be securely covered with a waterproof material which can be thoroughly sanitized and is not dangerous to children. The waterproof cover shall be free of rips or tears.

(i) Each mattress shall have a properly fitted clean sheet that is changed at least weekly, when soiled, and before another child uses the mattress.

(2) Stacked cribs are prohibited.

(3) When cribs are in use they shall be spaced apart from each other by a minimum of two feet on all sides or the cribs shall be separated by a divider and have at least two feet of space on two of the sides or ends of the crib. If a divider is used between cribs, the divider shall meet all of the following requirements:

(a) Be constructed so that staff may view children through or around the divider.

(b) Be unbreakable in normal use situations.

(c) Be made of a non-porous material that can be easily sanitized.

(d) Extends up higher than an infant standing in a crib can reach up and shall not impede child care staff members' ability to hear the child.

(4) Bumper pads shall not be used.

(5) Nothing shall be placed or hung over the side that obstructs the provider's view of the infant.

(6) Infants shall not be placed in cribs with bibs or any other items which could pose a strangulation or suffocation risk.

(7) No blankets shall be in the crib for infants under twelve months old. A one-piece sleeper or wearable blanket is permitted. Only children who are not yet able to roll-over are permitted to be swaddled using a wearable swaddling blanket.

(8) The cribs may be placed in storage on the premises if not currently assigned to an infant.

(9) Infants shall be placed in their cribs for sleeping, and shall not be allowed to sleep in bassinets, swings, car seats or other equipment. If a medical condition exists where a child needs to sleep in equipment other than a crib, written permission shall be obtained from a physician and shall be on file.

(10) Infants under twelve months old shall be placed on their backs to sleep unless the parent provides written authorization on the JFS 01235 "Sleep Position Waiver Statement for Child Care" signed by the child's physician. The JFS 01235 shall be maintained on file for review and is valid for one year. Infants who are able to roll from back to front and front to back shall be placed initially on their back for sleeping but allowed to remain in a position they prefer.

(11) Cribs assigned to a child shall not be used for storage of toys and other materials.

(C) What are the cot and mat requirements for a licensed child care center?

(1) A cot shall stand at least three inches and not more than eighteen inches off the floor. The cot shall be firm enough to support the child, but shall be resilient under pressure. Each cot shall be at least thirty-six inches in length and at least as long as the child assigned to the cot is tall.

(2) A mat is a pad that is at least one inch thick and at least as wide and long as the child using the mat.

(3) Children are only permitted to rest, nap, or sleep on a cot or mat.

(4) Centers that operate for fewer than seven hours without a scheduled nap time are not required to have a cot or mat for each preschool and school-age child.

(D) When shall children stop using cribs?

(1) When the child is able to climb out of the crib.

(2) When the child reaches the height of thirty-five inches.

(3) An infant twelve months or older may use a cot or mat with written permission from the parent.

(4) If the use of a crib is considered hazardous for a child, regardless of age, the infant may use a cot or mat with written permission from the parent.

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Rule 5180:2-12-21 | Evening and overnight care for a licensed child care center.

Rule 5180:2-12-21 was renumbered from 5101:2-12-21 on 01/02/2025.

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(A) When is a licensed child care center considered to be providing evening and overnight care?

Evening or overnight care is provided when children are in attendance anytime between the hours of seven p.m. and six a.m.

(B) What is required when evening and overnight care is provided?

If a licensed child care center has evening or overnight care, the following are required:

(1) Child care staff members shall remain awake at all times.

(2) The center shall provide adequate lighting indoors in all areas, including bathrooms, hallways, and sleeping rooms to ensure that child care staff members are able to see all children at all times.

(3) The center shall ensure that parking areas, outdoor walkways, and all building entrances be adequately lighted for safety and security.

(4) The center shall develop and follow bedtime routines in consultation with the parents of the children.

(5) The center shall provide a written security plan that ensures that access to the center is limited to parents and guardians of children in care and authorized persons.

(6) The center shall provide sleeping arrangements so that sleeping children are cared for separately from children who are awake, and so that sleeping children are not disturbed by arrivals and departures.

(7) The center shall ensure areas where children sleep during evening and overnight care are on the building's ground floor unless another floor has been approved for the care of sleeping children by the local fire official having jurisdiction.

(C) What sanitary environment and additional hygiene stipulations shall be followed by the center?

The center shall:

(1) Ensure that each child who sleeps at the center for four or more hours has clean comfortable sleeping clothes.

(2) Ensure that child care staff members assist children during washing and changing clothes according to children's developmental needs.

(3) Separate school-age boys from school-age girls during washing and while changing clothes to ensure privacy.

(4) If the child has a bedtime routine occurring at the program, ensure that each child has a clean, individual washcloth, towel and toothbrush, as appropriate for the age of the child, and labeled with the child's name.

(5) Provide children access to running water, liquid soap and toothpaste.

(6) Ensure bathtubs and showers are equipped to prevent slipping, if the center provides bathing. The center shall also have written permission from the parent prior to allowing the child to bathe.

(7) Ensure bathtubs and showers are cleaned and sanitized after each use. The tub or showers do not have to be sanitized between uses if the children are siblings and the parent has provided written consent. All children shall bathe separately unless the children are siblings and the parent has provided written consent that the children can be bathed together.

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Rule 5180:2-12-22 | Meal preparation/nutritional requirements for a licensed child care center.

Rule 5180:2-12-22 was renumbered from 5101:2-12-22 on 01/02/2025.

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(A) What are the requirements for meals and snacks in a licensed child care center?

The center is to:

(1) Serve varied, nutritious, and appropriately timed meals and snacks as described in appendix A to this rule.

(2) Follow the portion sizes and nutritional requirements for meals and snacks described in appendix B to this rule.

(3) Serve food that is not a choking hazard, and that is developmentally appropriate in size, amount and texture.

(4) Provide meals and snacks according to the posted current weekly menu, and spaced no more than four hours apart.

(a) The menus shall be posted in a visible place readily accessible to parents.

(b) The menus shall include all meals and snacks being served by the center, any substitutions shall be noted at the time of the change.

(5) Serve only one hundred per cent, undiluted fruit or vegetable juice, if used to meet the fruit or vegetable requirement for meals and snacks. Other fruit or vegetable juice is permitted as a beverage alternative.

(6) Ensure that supplemental food is on-site at the center and that no child goes more than four hours without at least a snack or meal, except when sleeping.

(7) Obtain a physician's written instructions if administering a medical food to any child or if an entire food group is eliminated. When special diets are required for cultural or religious reasons, the center shall obtain written, dated and signed instructions from the child's parent unless the special diet is part of a center program.

(8) Set its own policy regarding the accommodation of a parent's alternate diet for a child when the center provides the meal. The center shall ensure that any alternate diet, except those required for religious, cultural, or medical reasons as specified in paragraph (A)(7) of this rule, include items from each of the following food groups: meat or meat alternative, grain, fruit/vegetable, and fluid milk.

(9) Provide for the safe storage of all food, including milk (formula and breast milk for infants). If safe storage of milk is not available on routine trips or field trips, milk may be served at snack instead of at the meal.

(10) Have provisions for safe storage of parent provided food.

(11) Have drinking water freely available to children. If drinking fountains are used, there shall be sufficient water pressure so that the child's mouth does not come in contact with the water dispensing mechanism.

(12) Ensure that individual servings or individual packages of food or drink that have been served to a child are discarded or sent home with the child if not consumed during meal or snack time. Food or drink that is individually packaged and the package has not been opened may be stored at the center to be served again or sent home.

(13) Not have screens (television, computer, etc.) on during meals and snacks.

(B) What requirements shall a center implement for safe, independent self-feeding?

The center shall ensure that:

(1) Food is not served on bare tables. Food for infants may be placed directly on an individual highchair tray if the tray is removed, washed and sanitized in accordance with appendix A to rule 5101:2-12-13 of the Administrative Code.

(2) Eating utensils and dishes are suitable for the age and developmental level of the children.

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Rule 5180:2-12-23 | Infant care and diaper care for a licensed child care center.

Rule 5180:2-12-23 was renumbered from 5101:2-12-23 on 01/02/2025.

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(A) What are the requirements for infant daily care?

(1) The center shall:

(a) Allow infants to safely and comfortably sit, crawl, toddle, walk and play according to the infant's stage of development.

(b) Remove each infant from the crib, swing, infant seat, exercise seat or other equipment throughout the day for individual attention.

(c) Provide each non-crawling infant the opportunity for tummy time, outside of their crib, each day.

(d) Maintain a daily written record for each infant that is provided to the infant's parent or person picking up the infant on a daily basis. The record shall include the following information:

(i) Food intake.

(ii) Sleeping patterns.

(iii) Times and results of diaper changes.

(iv) Information about daily activities.

(2) Each infant shall be removed from his or her crib for all feedings. Infants shall be held or fed sitting up for bottled feedings. At no time shall a bottle be propped for an infant.

(B) What are the requirements for infant bottle and food preparation?

The center shall:

(1) Prepare and serve infant food in a manner appropriate to the developmental needs of each child. The center shall introduce new foods only after consultation with the parent. The center shall comply with written feeding instructions from the infant's parent, physician, physician's assistant, or certified nurse practitioner (CNP) which shall include the following:

(a) Type of food and/or formula/breast milk.

(b) Amount of food and/or formula/breast milk.

(c) Feeding times or frequency of feedings.

(2) Require the parent to update the written feeding instructions as needed.

(3) Not feed any foods, other than formula or breast milk, to infants under four months of age, unless there is written documentation on file from a physician, physician's assistant or CNP.

(4) Ensure that formula, breast milk, or other liquids in a bottle are not heated in a microwave oven.

(a) If formula or breast milk is to be warmed, bottles shall be placed in a container of water not hotter than one hundred twenty degrees or be placed in a commercial bottle warmer. The container of water shall be kept out of reach of children and shall be emptied and cleaned each day. The bottle shall be shaken well, and the formula or breast milk temperature tested before feeding.

(b) Frozen breast milk shall be thawed under cold running water or in the refrigerator.

(5) Ensure that the unused portion of formula, breast milk or food remaining in a container from which the infant has been directly fed shall not be reheated or served again.

(6) If provider prepares infant formula they shall do so according to the manufacturer's instructions or instructions from the infant's physician, physician's assistant or CNP.

(7) Ensure that open containers of ready-to-feed and concentrated formula shall be covered, dated and refrigerated according to the manufacturer's instructions. Prepared formula and food shall be discarded or sent home daily if not used.

(8) Label all bottles or prepared food with the infant's name and date of preparation. All formula shall be refrigerated immediately after preparation or upon arrival if the formula is prepared by the parent. All commercially prepared food shall be stored according to the manufacturer's instructions and not served after the expiration date.

(9) Ensure that if breast milk is provided by the parent, it shall be labeled with the infant's name, the date pumped, and the date the bottle was prepared. Centers shall follow the chart in appendix A to this rule for storing breast milk.

(C) What are the requirements for diapering?

(1) Diapers shall be changed immediately when wet or soiled.

(2) Clothing shall be changed immediately when wet or soiled.

(3) When changing diapers the center is to comply with the following:

(a) The center shall wash all soiled areas of the child's body with either a wash cloth, which is then appropriately sanitized, or a disposable wipe.

(b) If a diaper-changing surface is used to change more than one child, the provider shall place a disposable separation material between the child and the changing surface. A different separation material shall be used for each diaper change.

(c) If a diapering product is used on more than one child:

(i) The container shall not touch the child to avoid cross contamination.

(ii) The product shall be administered to avoid cross contamination.

(d) No child shall be left unattended on the diaper changing table.

(e) If restrooms are used for diapering, children who are waiting for toileting and diapering shall not be placed or required to sit directly on the floor.

(f) If using gloves while diapering, the center is to use non-latex gloves.

(4) The center shall store and launder soiled diapers or clothing as follows:

(a) If soiled diapers or clothing are to be sent home with a parent, the center shall store the diapers or clothing for no longer than one day in an individual covered container or plastic bag away from the child's belongings and out of the reach of children.

(b) The center shall store soiled diapers and diapering washcloths, which are to be laundered by the center, in a covered container with sanitizing solution.

(c) If soiled diapers are to be commercially laundered, the center shall hold them for laundering pickup for no longer than seven days.

(d) The center shall store soiled disposable diapers in a plastic-lined covered container that prevents hand contamination and is not easily accessible to children and discard diapers daily or more frequently as needed to eliminate odor.

(e) If the center is laundering diapers, the center shall follow the manufacturer's guidelines.

(5) Toilet training shall occur based on a child's readiness and consultation with the parent regarding practices in the child's home. The center shall ensure that toilet training is never forced.

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Rule 5180:2-12-24 | Swimming and water safety requirements for a licensed child care center.

Rule 5180:2-12-24 was renumbered from 5101:2-12-24 on 01/02/2025.

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(A) What are the requirements for swimming sites for a licensed child care center?

(1) All swimming sites shall meet all state and local guidelines for environmental health inspections. Inspection reports for on-site and private pools shall be on file at the center.

(2) A center shall have one lifeguard present for every thirty-five children when children are involved in a water activity for on-site or private pools over eighteen inches in depth.

(3) Activities in bodies of water eighteen inches or more in depth shall be supervised by people who are currently certified as lifeguards or water safety instructors by the "American Red Cross" or an equivalent water safety program, as determined by the Ohio department of job and family services (ODJFS). If the lifeguard is a child care staff member, they shall not be counted as a child care staff member in the staff/child ratio.

(4) Child care staff members shall be actively supervising children pursuant to rule 5101:2-12-19 of the Administrative Code and shall be able to clearly see all parts of the swimming area including the bottom of pools.

(5) The use of saunas, hot tubs, and spas by children is prohibited.

(6) Swimming in lakes, rivers, ponds, creeks or other similar bodies of water is prohibited.

(7) Swimming pools, wading pools and other swimming/wading sites shall be made inaccessible to the children when not in use.

(8) A center may use wading pools less than eighteen inches in wall height regardless of the amount of water put into it.

(a) Wading pools shall be filtered or emptied daily, and portable wading pools shall be sanitized daily or more often if needed.

(b) The child care staff member shall supervise children at all times while a wading pool is in use and shall be able to clearly see all parts of the wading area.

(B) What are the requirements for parental permission for water and swimming activities?

(1) A center shall have written permission from the parent when water is directly accessible to children and for the following activities:

(a) Before the child swims or plays in water eighteen inches or more in depth.

(b) Before the child participates in activities in or on water eighteen inches or more in depth.

(c) Before infants and toddlers use wading pools.

(2) Written parental permission shall be on file for one year at the center. Written permission for on-going activities such as the wading pools shall be updated annually.

(C) What shall be included in the written parental permission?

(1) Child's name and date of birth.

(2) Statement indicating whether the child is a non-swimmer or capable of swimming.

(3) Location of the water activities or swimming site by water of eighteen or more inches in depth.

(4) A statement of whether or not the center is providing additional adults or child care staff members above the licensing ratio requirements for this activity.

(5) A signature and date from the parent indicating permission for the activity.

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Rule 5180:2-12-25 | Medication administration, food supplements and medical foods for a licensed child care center.

Rule 5180:2-12-25 was renumbered from 5101:2-12-25 on 01/02/2025.

Effective: *October 29, 2021* ***Promulgated Under:*** *119.03*

(A) When is a JFS 01217 "Request for Administration of Medication for Child Care" required?

(1) The JFS 01217 is required for all prescription and non-prescription medication, including sample medication.

(2) The JFS 01217 is not required for a medication or medical food required by a JFS 01236 "Child Medical/Physical Care Plan for Child Care" pursuant to rule 5101:2-12-15 of the Administrative Code.

(3) The JFS 01217 is not required for non-prescription topical lotions or products.

(B) What are the requirements for prescription medications, non-prescription medicines containing codeine or aspirin, or non-prescription medication to be given longer than three consecutive days in a fourteen day period?

(1) The center shall ensure that the parent completes and signs box one of the JFS 01217.

(2) The center shall ensure that the instructions in box two of the JFS 01217 are completed and signed by a licensed physician, as defined in Chapter 4731. of the Revised Code, licensed dentist, advanced practice registered nurse or certified physician's assistant.

(3) Box two of the JFS 01217 does not need to be completed if the medication is stored in the original container with prescription label that includes the child's full name, a current dispensing date within the previous twelve months, exact dosage and directions for use.

(C) What are the requirements for non-prescription medications?

The center shall:

(1) Ensure that the parent completes and signs box one of the JFS 01217.

(2) Ensure that one of the following is met:

(a) The medication is stored in the original container with a manufacturer's label containing directions based on the age and/or weight of the child.

(b) The instructions in box two of the JFS 01217 are completed and signed by a licensed physician as defined in Chapter 4731. of the Revised Code, licensed dentist, advanced practice registered nurse, or certified physician's assistant, this excludes topical preventative products and lotions unless the instructions exceed or do not match the manufacturer's instructions or the non-prescription medication is not stored in original container.

(D) What are the requirements for topical products and lotions?

Written parental permission is not required for lip balm use or for using hand sanitizer with children older than twenty-four months.

For all other topical products and lotions, the center shall:

(1) Ensure that the product is stored in the original container with a manufacturer's label that includes directions based on the age and/or weight of the child.

(2) Ensure that the parent provides signed written permission to administer that topical product or lotion.

(3) Apply the non-prescription topical products and lotions according to the manufacturer's instructions. Documentation is not required by the staff.

(E) What are the requirements for a licensed child care center to administer medications, medical foods or topical products in a licensed child care center?

The center shall:

(1) Not administer any medication, medical food, or topical product until after the child has received the first dose or application at least once prior to the center administering a dose or applying the product, to avoid unexpected reactions. Emergency medications for the child are exempt from this requirement.

(2) Not administer any medication, medical food or topical product for any period of time beyond the date indicated by the physician, physician's assistant, advanced practice registered nurse certified to prescribe medication, or licensed dentist, on the prescription label, for twelve months from the date of the form, or after the expiration date on the medication, whichever comes first.

(3) Document each administration or application on the JFS 01217 immediately after administering, including when school-age children administer their own medication. This excludes items in paragraph (D) of this rule.

(4) Follow prescribed dosages or the manufacturer's recommended dosages for administering non-prescription medication.

(5) Complete a separate JFS 01217 for each medication to be administered for each child, excluding items in paragraph (D) of this rule. Each JFS 01217 is valid for the time period listed on the form, not to exceed twelve months from the date of signature.

(F) What are the requirements for storing medication, topical products and medical foods in a licensed child care center?

The center shall:

(1) Safely store all medication, medical foods, and topical products immediately upon arrival at the center. Ensure the medication, medical food, or topical product is stored per the requirements on the label in the original container with the child's name affixed.

(2) Keep medication, medical foods, and topical products out of the reach of children, unless a school-age child is permitted to carry their own emergency medication and a JFS 01236 is completed and on file at the center.

(3) Permit school-age children to carry and use their own topical products.

(4) Refrigerate, in a separate container, medications, medical foods, or topical products immediately upon arrival at the center if needed.

(5) Ensure that medications, medical foods, and topical products are accessible to employees at all times.

(6) Ensure that medications, medical foods, and topical products are removed from the center when no longer needed or expired.

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